

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NO.	PAGE 1 OF 79
2. CONTRACT NO.	3. AWARD/EFFECTIVE DATE
4. ORDER NO.	5. SOLICITATION NUMBER 36C10X26Q0099
6. SOLICITATION ISSUE DATE	7. FOR SOLICITATION INFORMATION CALL: a. NAME Rebecca Ubert Rebecca.Ubert@va.gov
8. OFFER DUE DATE/LOCAL TIME EDT	b. TELEPHONE NO. (No Collect Calls)

9. ISSUED BY Strategic Acquisition Center - Frederick Department of Veterans Affairs 5202 Presidents Court, Suite 103 Frederick MD 21703	CODE 36C10X	10. THIS ACQUISITION IS ☐ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☒ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☐ EDWOSB ☐ 8(A) NAICS: 541612 SIZE STANDARD:
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11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐	13b. RATING N/A
		14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP	

15. DELIVER TO See PWS	CODE	16. ADMINISTERED BY Strategic Acquisition Center - Frederick Department of Veterans Affairs 5202 Presidents Court, Suite 103 Frederick MD 21703	CODE 36C10X
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17a. CONTRACTOR/OFFEROR TBD	CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY U.S. Department of Veterans Affairs Financial Services Center PO BOX 149971 (see Section B.3 invoicing/payment) Austin TX 78714-8917 PHONE: 1-(877)-489-6135 FAX:	CODE VAFSC
TELEPHONE NO.	UEI:	EFT:		

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER	☐ SEE ADDENDUM
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19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES See CONTINUATION Page	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Military to Civilian Readiness (M2CR) Transition Assistance Program (TAP) DRAFT SOLICITATION FOR INDUSTRY QUESTIONS / COMMENTS Questions and Comments are due to Rebecca.Ubert@va.gov and Roxana.Cepeda@va.gov on 15 MAY 2026 at 4pm EST This draft solicitation is subject to the RFO dated 30 April 26 The formal Solicitation will be issued on GSA. This draft Solicitation is for questions and comments only. No offers will be accepted in response to this draft solicitation. (Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page	26. TOTAL AWARD AMOUNT (For Govt. Use Only)
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA	☐ ARE ☐ ARE NOT ATTACHED.
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA	☐ ARE ☐ ARE NOT ATTACHED
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED	☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____, YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)		
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)	31c. DATE SIGNED

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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C10X

Strategic Acquisition Center - Frederick

Department of Veterans Affairs

5202 Presidents Court, Suite 103

Frederick MD 21703

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☐ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☐

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 IT CONTRACT SECURITY

VA INFORMATION AND INFORMATION SYSTEM SECURITY/PRIVACY

1. GENERAL

Contractors, contractor personnel, subcontractors, and subcontractor personnel shall be subject to the same Federal laws, regulations, standards, and VA Directives and Handbooks as VA and VA personnel regarding information and information system security.

2. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS

a. A contractor/subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees, subcontractors, and affiliates only to the extent necessary to perform the services specified in the contract, agreement, or task order.

b. All contractors, subcontractors, and third-party servicers and associates working with VA information are subject to the same investigative requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors must be in accordance with VA Directive and Handbook 0710, Personnel Suitability and Security Program. The Office for Operations, Security, and Preparedness is responsible for these policies and procedures.

c. Contract personnel who require access to national security programs must have a valid security clearance. National Industrial Security Program (NISP) was established by Executive Order 12829 to ensure that cleared U.S. defense industry contract personnel safeguard the classified information in their possession while performing work on contracts, programs, bids, or research and development efforts. The Department of Veterans Affairs does not have a Memorandum of Agreement with Defense Security Service (DSS). Verification of a Security Clearance must be processed through the Special Security Officer located in the Planning and National Security Service within the Office of Operations, Security, and Preparedness.

d. Custom software development and outsourced operations must be located in the U.S. to the maximum extent practical. If such services are proposed to be performed abroad and are not disallowed by other VA policy or mandates, the contractor/subcontractor must state where all non-U.S. services are provided and detail a security plan, deemed to be acceptable by VA, specifically to address mitigation of the resulting problems of communication, control, data protection, and so forth. Location within the U.S. may be an evaluation factor.

e. The contractor or subcontractor must notify the Contracting Officer immediately when an employee working on a VA system or with access to VA information is reassigned or leaves the contractor or subcontractor's employ. The Contracting Officer must also be notified immediately by the contractor or subcontractor prior to an unfriendly termination.

3. VA INFORMATION CUSTODIAL LANGUAGE

a. Information made available to the contractor or subcontractor by VA for the performance or administration of this contract or information developed by the contractor/subcontractor in performance or administration of the contract shall be used only for those purposes and shall not be used in any other way without the prior written agreement of the VA. This clause expressly limits the contractor/subcontractor's rights to use data as described in Rights in Data - General, FAR 52.227-14(d) (1).

b. VA information should not be co-mingled, if possible, with any other data on the contractors/subcontractor's information systems or media storage systems in order to ensure VA requirements related to data protection and media sanitization can be met. If co-mingling must be allowed to meet the requirements of the business need, the contractor must ensure that VA's information is returned to the VA or destroyed in accordance with VA's sanitization requirements. VA reserves the right to conduct on site inspections of contractor and subcontractor IT resources to ensure data security controls, separation of data and job duties, and destruction/media sanitization procedures are in compliance with VA directive requirements.

c. Prior to termination or completion of this contract, contractor/ subcontractor must not destroy information received from VA, or gathered/ created by the contractor in the course of performing this contract without prior written approval by the VA. Any data destruction done on behalf of VA by a contractor/subcontractor must be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management and its Handbook 6300.1 Records Management Procedures, applicable VA Records Control Schedules, and VA Handbook 6500.1, Electronic Media Sanitization. Self-certification by the contractor that the data destruction requirements above have been met must be sent to the VA Contracting Officer within 30 days of termination of the contract.

d. The contractor/subcontractor must receive, gather, store, back up, maintain, use, disclose and dispose of VA information only in compliance with the terms of the contract and applicable Federal and VA information confidentiality and security laws, regulations and policies. If Federal or VA information confidentiality and security laws, regulations and policies become applicable to the VA information or information systems after execution of the contract, or if NIST issues or updates applicable FIPS or Special Publications (SP) after execution of this contract, the parties agree to negotiate in good faith to implement the information confidentiality and security laws, regulations and policies in this contract.

e. The contractor/subcontractor shall not make copies of VA information except as authorized and necessary to perform the terms of the agreement or to preserve electronic information stored

on contractor/subcontractor electronic storage media for restoration in case any electronic equipment or data used by the contractor/subcontractor needs to be restored to an operating state. If copies are made for restoration purposes, after the restoration is complete, the copies must be appropriately destroyed.

f. If VA determines that the contractor has violated any of the information confidentiality, privacy, and security provisions of the contract, it shall be sufficient grounds for VA to withhold payment to the contractor or third party or terminate the contract for default or terminate for cause under Federal Acquisition Regulation (FAR) part 12.

g. If a VHA contract is terminated for cause, the associated BAA must also be terminated and appropriate actions taken in accordance with VHA Handbook 1600.01, Business Associate Agreements. Absent an agreement to use or disclose protected health information, there is no business associate relationship.

h. The contractor/subcontractor must store, transport, or transmit VA sensitive information in an encrypted form, using VA-approved encryption tools that are, at a minimum, FIPS 140-2 validated.

i. The contractor/subcontractor's firewall and Web services security controls, if applicable, shall meet or exceed VA's minimum requirements. VA Configuration Guidelines are available upon request.

j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the contractor/subcontractor may use and disclose VA information only in two other situations: (i) in response to a qualifying order of a court of competent jurisdiction, or (ii) with VA's prior written approval. The contractor/subcontractor must refer all requests for, demands for production of, or inquiries about, VA information and information systems to the VA contracting officer for response.

k. Notwithstanding the provision above, the contractor/subcontractor shall not release VA records protected by Title 38 U.S.C. 5705, confidentiality of medical quality assurance records and/or Title 38 U.S.C. 7332, confidentiality of certain health records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse, or infection with human immunodeficiency virus. If the contractor/subcontractor is in receipt of a court order or other requests for the above mentioned information, that contractor/subcontractor shall immediately refer such court orders or other requests to the VA contracting officer for response.

l. For service that involves the storage, generating, transmitting, or exchanging of VA sensitive information but does not require C&A or an MOU-ISA for system interconnection, the contractor/subcontractor must complete a Contractor Security Control Assessment (CSCA) on a yearly basis and provide it to the COR.

4. INFORMATION SYSTEM DESIGN AND DEVELOPMENT

a. Information systems that are designed or developed for or on behalf of VA at non-VA facilities shall comply with all VA directives developed in accordance with FISMA, HIPAA, NIST, and related VA security and privacy control requirements for Federal information systems. This includes standards for the protection of electronic PHI, outlined in 45 C.F.R. Part 164, Subpart C, information and system security categorization level designations in accordance with FIPS 199 and FIPS 200 with implementation of all baseline security controls commensurate with the FIPS 199 system security categorization (reference Appendix D of VA Handbook 6500, VA Information Security Program). During the development cycle a Privacy Impact Assessment (PIA) must be completed, provided to the COR, and approved by the VA Privacy Service in accordance with Directive 6507, VA Privacy Impact Assessment.

b. The contractor/subcontractor shall certify to the COR that applications are fully functional and operate correctly as intended on systems using the VA Federal Desktop Core Configuration (FDCC), and the common security configuration guidelines provided by NIST or the VA. This includes Internet Explorer 7 configured to operate on Windows XP and Vista (in Protected Mode on Vista) and future versions, as required.

c. The standard installation, operation, maintenance, updating, and patching of software shall not alter the configuration settings from the VA approved and FDCC configuration. Information technology staff must also use the Windows Installer Service for installation to the default "program files" directory and silently install and uninstall.

d. Applications designed for normal end users shall run in the standard user context without elevated system administration privileges.

e. The security controls must be designed, developed, approved by VA, and implemented in accordance with the provisions of VA security system development life cycle as outlined in NIST Special Publication 800-37, Guide for Applying the Risk Management Framework to Federal Information Systems, VA Handbook 6500, Information Security Program and VA Handbook 6500.5, Incorporating Security and Privacy in System Development Lifecycle.

f. The contractor/subcontractor is required to design, develop, or operate a System of Records Notice (SOR) on individuals to accomplish an agency function subject to the Privacy Act of 1974, (as amended), Public Law 93-579, December 31, 1974 (5 U.S.C. 552a) and applicable agency regulations. Violation of the Privacy Act may involve the imposition of criminal and civil penalties.

g. The contractor/subcontractor agrees to:

(1) Comply with the Privacy Act of 1974 (the Act) and the agency rules and regulations issued under the Act in the design, development, or operation of any system of records on individuals to accomplish an agency function when the contract specifically identifies:

(a) The Systems of Records (SOR); and

(b) The design, development, or operation work that the contractor/ subcontractor is to perform;

(1) Include the Privacy Act notification contained in this contract in every solicitation and resulting subcontract and in every subcontract awarded without a solicitation, when the work statement in the proposed subcontract requires the redesign, development, or operation of a SOR on individuals that is subject to the Privacy Act; and

(2) Include this Privacy Act clause, including this subparagraph (3), in all subcontracts awarded under this contract which requires the design, development, or operation of such a SOR.

h. In the event of violations of the Act, a civil action may be brought against the agency involved when the violation concerns the design, development, or operation of a SOR on individuals to accomplish an agency function, and criminal penalties may be imposed upon the officers or employees of the agency when the violation concerns the operation of a SOR on individuals to accomplish an agency function. For purposes of the Act, when the contract is for the operation of a SOR on individuals to accomplish an agency function, the contractor/subcontractor is considered to be an employee of the agency.

(1) "Operation of a System of Records" means performance of any of the activities associated with maintaining the SOR, including the collection, use, maintenance, and dissemination of records.

(2) "Record" means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, education, financial transactions, medical history, and criminal or employment history and contains the person's name, or identifying number, symbol, or any other identifying particular assigned to the individual, such as a fingerprint or voiceprint, or a photograph.

(3) "System of Records" means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual.

i. The vendor shall ensure the security of all procured or developed systems and technologies, including their subcomponents (hereinafter referred to as "Systems"), throughout the life of this contract and any extension, warranty, or maintenance periods. This includes, but is not limited to workarounds, patches, hotfixes, upgrades, and any physical components (hereafter referred to as Security Fixes) which may be necessary to fix all security vulnerabilities published or known to the vendor anywhere in the Systems, including Operating Systems and firmware. The vendor shall ensure that Security Fixes shall not negatively impact the Systems.

j. The vendor shall notify VA within 24 hours of the discovery or disclosure of successful exploits of the vulnerability which can compromise the security of the Systems (including the confidentiality or integrity of its data and operations, or the availability of the system). Such issues shall be remediated as quickly as is practical, but in no event longer than days.

k. When the Security Fixes involve installing third party patches (such as Microsoft OS patches or Adobe Acrobat), the vendor will provide written notice to the VA that the patch has been validated as not affecting the Systems within 10 working days. When the vendor is responsible for operations or maintenance of the Systems, they shall apply the Security Fixes within days.

l. All other vulnerabilities shall be remediated as specified in this paragraph in a timely manner based on risk, but within 60 days of discovery or disclosure. Exceptions to this paragraph (e.g. for the convenience of VA) shall only be granted with approval of the contracting officer and the VA Assistant Secretary for Office of Information and Technology.

5. INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE, OR USE

a. For information systems that are hosted, operated, maintained, or used on behalf of VA at non-VA facilities, contractors/subcontractors are fully responsible and accountable for ensuring compliance with all HIPAA, Privacy Act, FISMA, NIST, FIPS, and VA security and privacy directives and handbooks. This includes conducting compliant risk assessments, routine vulnerability scanning, system patching and change management procedures, and the completion of an acceptable contingency plan for each system. The contractor's security control procedures must be equivalent, to those procedures used to secure VA systems. A Privacy Impact Assessment (PIA) must also be provided to the COR and approved by VA Privacy Service prior to operational approval. All external Internet connections to VA's network involving VA information must be reviewed and approved by VA prior to implementation.

b. Adequate security controls for collecting, processing, transmitting, and storing of Personally Identifiable Information (PII), as determined by the VA Privacy Service, must be in place, tested, and approved by VA prior to hosting, operation, maintenance, or use of the information system, or systems by or on behalf of VA. These security controls are to be assessed and stated within the PIA and if these controls are determined not to be in place, or inadequate, a Plan of Action and Milestones (POA&M) must be submitted and approved prior to the collection of PII.

c. Outsourcing (contractor facility, contractor equipment or contractor staff) of systems or network operations, telecommunications services, or other managed services requires certification and accreditation (authorization) (C&A) of the contractor's systems in accordance with VA Handbook 6500.3, Certification and Accreditation and/or the VA OCS Certification Program Office. Government- owned (government facility or government equipment) contractor-operated systems, third party or business partner networks require memorandums of understanding and interconnection agreements (MOU-ISA) which detail what data types are shared, who has access, and the appropriate level of security controls for all systems connected to VA networks.

d. The contractor/subcontractor's system must adhere to all FISMA, FIPS, and NIST standards related to the annual FISMA security controls assessment and review and update the PIA. Any deficiencies noted during this assessment must be provided to the VA contracting officer and the ISO for entry into VA's POA&M management process. The contractor/subcontractor must use VA's POA&M process to document planned remedial actions to address any deficiencies in

information security policies, procedures, and practices, and the completion of those activities. Security deficiencies must be corrected within the timeframes approved by the government. Contractor/subcontractor procedures are subject to periodic, unannounced assessments by VA officials, including the VA Office of Inspector General. The physical security aspects associated with contractor/ subcontractor activities must also be subject to such assessments. If major changes to the system occur that may affect the privacy or security of the data or the system, the C&A of the system may need to be reviewed, retested and re- authorized per VA Handbook 6500.3. This may require reviewing and updating all of the documentation (PIA, System Security Plan, Contingency Plan). The Certification Program Office can provide guidance on whether a new C&A would be necessary.

e. The contractor/subcontractor must conduct an annual self assessment on all systems and outsourced services as required. Both hard copy and electronic copies of the assessment must be provided to the COR. The government reserves the right to conduct such an assessment using government personnel or another contractor/subcontractor. The contractor/subcontractor must take appropriate and timely action (this can be specified in the contract) to correct or mitigate any weaknesses discovered during such testing, generally at no additional cost.

f. VA prohibits the installation and use of personally-owned or contractor/ subcontractor-owned equipment or software on VA's network. If non-VA owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, SOW or contract. All of the security controls required for government furnished equipment (GFE) must be utilized in approved other equipment (OE) and must be funded by the owner of the equipment. All remote systems must be equipped with, and use, a VA-approved antivirus (AV) software and a personal (host-based or enclave based) firewall that is configured with a VA-approved configuration. Software must be kept current, including all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-viral software and the firewall on the non-VA owned OE.

g. All electronic storage media used on non-VA leased or non-VA owned IT equipment that is used to store, process, or access VA information must be handled in adherence with VA Handbook 6500.1, Electronic Media Sanitization upon: (i) completion or termination of the contract or (ii) disposal or return of the IT equipment by the contractor/subcontractor or any person acting on behalf of the contractor/subcontractor, whichever is earlier. Media (hard drives, optical disks, CDs, back-up tapes, etc.) used by the contractors/ subcontractors that contain VA information must be returned to the VA for sanitization or destruction or the contractor/subcontractor must self-certify that the media has been disposed of per 6500.1 requirements. This must be completed within 30 days of termination of the contract.

h. Bio-Medical devices and other equipment or systems containing media (hard drives, optical disks, etc.) with VA sensitive information must not be returned to the vendor at the end of lease, for trade-in, or other purposes. The options are:

- (1) Vendor must accept the system without the drive;

(2) VA's initial medical device purchase includes a spare drive which must be installed in place of the original drive at time of turn-in; or

(3) VA must reimburse the company for media at a reasonable open market replacement cost at time of purchase.

(4) Due to the highly specialized and sometimes proprietary hardware and software associated with medical equipment/systems, if it is not possible for the VA to retain the hard drive, then;

(a) The equipment vendor must have an existing BAA if the device being traded in has sensitive information stored on it and hard drive(s) from the system are being returned physically intact; and

(b) Any fixed hard drive on the device must be non-destructively sanitized to the greatest extent possible without negatively impacting system operation. Selective clearing down to patient data folder level is recommended using VA approved and validated overwriting technologies/methods/tools. Applicable media sanitization specifications need to be pre-approved and described in the purchase order or contract.

(c) A statement needs to be signed by the Director (System Owner) that states that the drive could not be removed and that (a) and (b) controls above are in place and completed. The ISO needs to maintain the documentation.

6. SECURITY INCIDENT INVESTIGATION

a. The term "security incident" means an event that has, or could have, resulted in unauthorized access to, loss or damage to VA assets, or sensitive information, or an action that breaches VA security procedures. The contractor/ subcontractor shall immediately notify the COR and simultaneously, the designated ISO and Privacy Officer for the contract of any known or suspected security/privacy incidents, or any unauthorized disclosure of sensitive information, including that contained in system(s) to which the contractor/ subcontractor has access.

b. To the extent known by the contractor/subcontractor, the contractor/ subcontractor's notice to VA shall identify the information involved, the circumstances surrounding the incident (including to whom, how, when, and where the VA information or assets were placed at risk or compromised), and any other information that the contractor/subcontractor considers relevant.

c. With respect to unsecured protected health information, the business associate is deemed to have discovered a data breach when the business associate knew or should have known of a breach of such information. Upon discovery, the business associate must notify the covered entity of the breach. Notifications need to be made in accordance with the executed business associate agreement.

d. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of

jurisdiction, including the VA OIG and Security and Law Enforcement. The contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

7. LIQUIDATED DAMAGES FOR DATA BREACH

a. Consistent with the requirements of 38 U.S.C. 5725, a contract may require access to sensitive personal information. If so, the contractor is liable to VA for liquidated damages in the event of a data breach or privacy incident involving any SPI the contractor/subcontractor processes or maintains under this contract.

b. The contractor/subcontractor shall provide notice to VA of a "security incident" as set forth in the Security Incident Investigation section above. Upon such notification, VA must secure from a non-Department entity or the VA Office of Inspector General an independent risk analysis of the data breach to determine the level of risk associated with the data breach for the potential misuse of any sensitive personal information involved in the data breach. The term 'data breach' means the loss, theft, or other unauthorized access, or any access other than that incidental to the scope of employment, to data containing sensitive personal information, in electronic or printed form, that results in the potential compromise of the confidentiality or integrity of the data. Contractor shall fully cooperate with the entity performing the risk analysis. Failure to cooperate may be deemed a material breach and grounds for contract termination.

c. Each risk analysis shall address all relevant information concerning the data breach, including the following:

- (1) Nature of the event (loss, theft, unauthorized access);
- (2) Description of the event, including:
 - (a) date of occurrence;
 - (b) data elements involved, including any PII, such as full name, social security number, date of birth, home address, account number, disability code;
- (3) Number of individuals affected or potentially affected;
- (4) Names of individuals or groups affected or potentially affected;
- (5) Ease of logical data access to the lost, stolen or improperly accessed data in light of the degree of protection for the data, e.g., unencrypted, plain text;
- (6) Amount of time the data has been out of VA control;

(7) The likelihood that the sensitive personal information will or has been compromised (made accessible to and usable by unauthorized persons);

(8) Known misuses of data containing sensitive personal information, if any;

(9) Assessment of the potential harm to the affected individuals;

(10) Data breach analysis as outlined in 6500.2 Handbook, Management of Security and Privacy Incidents, as appropriate; and

(11) Whether credit protection services may assist record subjects in avoiding or mitigating the results of identity theft based on the sensitive personal information that may have been compromised.

d. Based on the determinations of the independent risk analysis, the contractor shall be responsible for paying to the VA liquidated damages in the amount of per affected individual to cover the cost of providing credit protection services to affected individuals consisting of the following:

(1) Notification;

(2) One year of credit monitoring services consisting of automatic daily monitoring of at least 3 relevant credit bureau reports;

(3) Data breach analysis;

(4) Fraud resolution services, including writing dispute letters, initiating fraud alerts and credit freezes, to assist affected individuals to bring matters to resolution;

(5) One year of identity theft insurance with \$20,000.00 coverage at \$0 deductible; and

(6) Necessary legal expenses the subjects may incur to repair falsified or damaged credit records, histories, or financial affairs.

8. SECURITY CONTROLS COMPLIANCE TESTING

On a periodic basis, VA, including the Office of Inspector General, reserves the right to evaluate any or all of the security controls and privacy practices implemented by the contractor under the clauses contained within the contract. With 10 working-day's notice, at the request of the government, the contractor must fully cooperate and assist in a government-sponsored security controls assessment at each location wherein VA information is processed or stored, or information systems are developed, operated, maintained, or used on behalf of VA, including those initiated by the Office of Inspector General. The government may conduct a security control assessment on shorter notice (to include unannounced assessments) as determined by VA in the event of a security incident or at any other time.

9. TRAINING

a. All contractor employees and subcontractor employees requiring access to VA information and VA information systems shall complete the following before being granted access to VA information and its systems:

- (1) Sign and acknowledge (either manually or electronically) understanding of and responsibilities for compliance with the Contractor Rules of Behavior, Appendix E relating to access to VA information and information systems;
- (2) Successfully complete the VA Cyber Security Awareness and Rules of Behavior training and annually complete required security training;
- (3) Successfully complete the appropriate VA privacy training and annually complete required privacy training; and
- (4) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system access [to be defined by the VA program official and provided to the contracting officer for inclusion in the solicitation document - e.g., any role-based information security training required in accordance with NIST Special Publication 800-16, Information Technology Security Training Requirements.]

b. The contractor shall provide to the contracting officer and/or the COR a copy of the training certificates and certification of signing the Contractor Rules of Behavior for each applicable employee within 1 week of the initiation of the contract and annually thereafter, as required.

c. Failure to complete the mandatory annual training and sign the Rules of Behavior annually, within the timeframe required, is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the training and documents are complete.

(End of Clause)

B. 3 PERFORMANCE WORK STATEMENT

Title: Department of Veterans Affairs Transition Assistance Program

1. BACKGROUND

Approximately 200,000 Service members leave military service and return to life as civilians, a process known as military to civilian transition, every year. To aid that transition, Congress has passed various laws intended to prepare eligible Service members and their families to face the many challenges of transitioning from active duty back to civilian life. In response, VA, and its interagency partners at the Department of War (DoW), Department of Labor (DOL), Department of Homeland Security, Department of Education, Office of Personnel and Management, and Small Business Administration have implemented various programs to carry out these requirements and ensure that Service members are provided with the tools and information necessary to transition into civilian life.

One of these Congressionally mandated programs is the Transition Assistance Program (TAP), which is an overarching program implemented by each of the military services (U.S. Army, U.S. Marine Corps, U.S. Navy, U.S. Air Force, U.S. Space Force and U.S. Coast Guard). TAP is designed to provide transition assistance, information, training, counseling, and services to eligible Service members. It ensures Service members are career ready upon separation, retirement, or release from active duty, tailoring the support to meet the unique needs of the individual and their family. This individualized approach enables them to pursue additional education, seek or return to employment in the public or private sector, start their own business, pursue vocational training, or other activities that meet their specific needs.

As provided by TAP, transition assistance consists of all related transition activities, curriculum, resources, and services provided to enable eligible Service members to attain the career readiness standards (CRS) established by the respective military services. Pursuant to 10 United States Code (U.S.C.) § 1142(a)(4)(C), the eligibility requirement is that all Service members who serve for a period of 180 continuous days or more on active duty, pursuant to 10 United States Code (U.S.C.) § 1142(a)(4)(C), must go through transition assistance. Transition assistance must start no later than 365 days prior to the anticipated date of separation unless otherwise excused. For anticipated retirements, transition assistance must start no later than 720 days. All eligible Service members must participate in TAP to meet CRS utilizing the services and briefings to meet CRS specific to their post-transition goals. The TAP process (ATTACHMENT A) is codified in 10 U.S.C. § 1142 and 1144 and include but are not limited to the following:

- **Initial Counseling (IC):** Facilitated by the military services, includes a personal self-assessment/ individual transition plan (ITP) to identify the pathway that determines the Service members' level of transition assistance needed and post-transition goals in accordance with Section 1142 of Title 10, U.S.C.
- **Pre-separation/Transition Counseling:** Provided by the military services, provides counseling on various benefits, programs, services, tools, and other important resource entitlements for which they may be eligible pursuant to 10 U.S.C. § 1142.
- **Department of War (DoW) Transition Day:** Conducted by the DoW, delivers an understanding of resilience necessary during transition, identifies and translates current military position description into civilian equivalent, and provides financial literacy training at transition.
- **VA Benefits and Services:** Conducted by VA, provides information about VA benefits Service members may have earned, how to apply for them, and how to leverage them for the best possible outcome, in accordance with 10 U.S.C. § 1142.
- **Department of Labor (DOL) One-Day:** Conducted by DOL, provides an overview of employment in the civilian sector, in accordance with 10 U.S.C. § 1144.
- **Two-Day Tracks:** Provided by various agencies, tracks are chosen by Service members to fulfill their personal self-assessment/ITP and post-transition goals. These include employment, education, vocational, and entrepreneurship.
- **Capstone:** Conducted by the military services, provides an opportunity for eligible Service members to verify attainment of the CRS by the commander or designee. Based upon the judgment of the commander or commander's designee, if the Service member cannot meet the CRS before transition, the commander or designee verifies, confirms and documents a referral to appropriate interagency partners or local resources.
- **Military Life Cycle (MLC) model:** The MLC transition model provides information on benefits, services, and resources available to active-duty Service members beginning with

their first duty station, through their transition to civilian life.

In support of TAP, VA provides onsite support for the mandatory full-day VA Benefits and Services briefing required under 10 U.S.C. § 1144(f)(1)(B) to 100% of eligible transitioning Service members, and on a space available basis to dependents, caregivers, survivors, and Veterans. VA also provides onsite support to other TAP events, including but not limited to pre-separation counseling, one-on-one assistance, National Guard and Reserve support, installation engagements (events at the request of installation commanders or other designees such as new arrival events, Yellow Ribbon Reintegration Program, local resource fairs, career-preparedness activities, and spouse events) to provide information on where and how to learn more about benefits, programs and services and referrals that ensure the Service member is informed on and connected to the appropriate VA benefits that apply to their specific situation.

2. SCOPE OF WORK

As the agency program office responsible for conducting VA's contribution to the interagency TAP, Office of Military to Civilian Readiness (M2CR) requires contract support services to continue the existing TAP onsite support and associated program management, curriculum development, and training requirements. This contract support encompasses program management and administration; curriculum development, revision, and validation; onsite support activities at military installations to conduct and report on VA-supported activities; conduct in-person, instructor-led classroom and instructor-led virtual briefings to include virtual off-base transition training workshops; providing information through generalized and one-on-one settings; and conducting evaluations.

The Contractor's role in this support is pivotal, requiring the capability for worldwide program sustainment. This involves supporting approximately 200,000 transitioning Service members each year across more than 300 installations within the Contiguous United States (CONUS) and Outside the Contiguous United States (OCONUS) annually. The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to support TAP operations as defined in this Performance Work Statement (PWS), except for those items specified as Government-furnished property and services.

3. CONTRACT TYPE

The proposed contract type is a hybrid labor-hour and firm fixed price with optional time and material tasks.

4. PERIOD OF PERFORMANCE

The period of performance shall consist of a (1) year base period and four (4) option periods of twelve (12) months in duration. The overall Period of Performance shall not exceed 60 months. The VA intends to add an option clause not to exceed 6 months after the fifth year.

The proposed period of performance is:

TBD, anticipate Base + 4

There are eleven (11) Federal holidays set by law (USC Title 5 Section 6103) that VA follows:

Under current definitions, four are set by date:

New Year's Day	January 1
Juneteenth	June 19
Independence Day	July 4
Veterans Day	November 11
Christmas Day	December 25

If any of the above falls on a Saturday, then Friday shall be observed as a holiday. Similarly, if one falls on a Sunday, then Monday shall be observed as a holiday.

The other six are set by a day of the week and month:

Martin Luther King's Birthday	Third Monday in January
Washington's Birthday	Third Monday in February
Memorial Day	Last Monday in May
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Thanksgiving Day	Fourth Thursday in November

5. PLACE OF PERFORMANCE

The Contractor shall perform the tasks under this PWS at the VBA Central Office, 1800 G Street NW, Washington, DC 20006 and/or any VA facility within the District of Columbia; Contractor facilities (offsite); DoW installations worldwide as identified in ATTACHMENT F. Specified tasks may require in-person office support at VBA Central Office. Please note that OCONUS locations may require the administration of Status of Forces Agreements (SOFA) as required by host-nation labor regulations (ATTACHMENT L). Further, the Contracting Officer's Representative (COR) must approve other locations not specified in ATTACHMENT F, such as events at non-military installation locations in support of Reserve and National Guard Component. The Contractor is responsible for conducting business that meets the needs of the location where they are assigned. Usually, but not always, this is an eight (8) hour workday with an additional 30 minutes for lunch, local time. The Contractor shall be available Monday-Friday, 7:30 a.m.to 4:00 p.m. (local time) for weekly meetings and deliverables at each location. Working hours are not inclusive of travel (regular commute) to and from assigned work location.

Regional Leads shall reside in their region.

6. GENERAL REQUIREMENTS

Tasks performed shall be of a non-personal nature. VA organizations will not provide supervision of contractor personnel. Contractor personnel shall at no time allow an employer-

employee relationship to develop with VA organizations or their staff. VA organizations will refrain from any activities that create the appearance of such a relationship.

Contractors shall not perform inherently governmental functions including decision-making, supervision of Government employees, supervision of other contractors on other contracts, and activities that create the appearance of performing such functions.

The Contractor shall ensure that all written deliverables are phrased in accordance with Public Law (P.L.) 111-274, plain language. All externally used documents must be in accordance with VA's 508 compliance policies. These standards, set by Section 508 of the Rehabilitation Act of 1973, require federal agencies to provide software and website accessibility to people with disabilities. Statistical and other technical terminology shall not be used without providing a glossary of terms.

Where a written milestone deliverable is required in draft form, the COR, Alternate Contracting Officer's Representative (ACOR), and the Government Program Manager (PM) will complete the review of the draft deliverable within fifteen (15) calendar days from date of receipt. The Contractor shall have ten (10) calendar days to deliver the final deliverable from date of receipt of the Government's comments.

All deliverables shall be delivered in accordance with the delivery schedule (Section 8).

The COR, ACOR's, and Government PM will attend all meetings and briefings where deliverables or the execution of this contract will be discussed. The Contractor shall include the COR, ACOR's, and Government PM in all communication related to this PWS and the execution of the contract.

To ensure proper preservation of records generated by email, the Contractor shall ensure that all contractor personnel assigned VA email accounts will use those accounts to transmit emails related to work completed towards this contract. If contract personnel are unable to use the VA email account due to technical constraints of any kind, the corporate email account may be used if the following requirements are met: the record contains no controlled unclassified information, PII, PHI, or other VA sensitive information.

All documents and data collected for contract implementation must be stored on VA Network or other location that have been expressly approved by the COR and Government PM.

Contract deliverables due by Close of Business (COB), are due by 4:00 pm local time, Washington, DC.

The Contractor shall not commence performance on the tasks in this PWS without expressed written approval from the Contracting Officer (CO). Performance will not commence until after the CO has conducted a kick-off meeting to be scheduled within ten (10) calendar days of the award of the contract. The Contractor shall attend the kick-off meeting which will include the VA project team and may include a project advisory group comprised of key stakeholders and Subject Matter Experts from the interagency TAP. At the kick-off meeting, the Contractor shall brief the details of the project management plan (PMP), and this briefing shall include an overview of the Contractor's intended approach, work plan, and project

schedule to include deliverables, tasks, and subtasks, with major milestones indicated.

7. MANDATORY TASKS

7.1. TASK 1 – Program Management and Administration

7.1.A Task 1: Part A. Project Management Plan (PMP)

The Contractor shall provide a detailed Project Management/Implementation Plan (PMP) and briefing for the project team to be conducted at the kick-off meeting. This shall encompass the Contractor's plan for completing the contract describing the technical approach, management plan, organizational structure and resources, and management controls that will meet the objectives of this PWS. The Contractor's plan shall be responsive to this PWS and describe, in further detail, the approach to be used for each aspect of the contract as defined in the proposal. The Contractor shall keep the PMP up to date throughout the period of performance. At a minimum, the PMP will be validated annually. The Government may request additional PMP updates that will be completed by the Contractor and delivered to the COR and PM no more than ten (10) calendar days after the request. These updates may include revisions to procedures and processes that are mandated by new legislation or VA Policy. Any recommended PMP changes that impact the price shall be identified with price impact and shall not be implemented until approved by the CO through a modification.

The PMP shall comply with Project Management Institute (PMI) suggested requirements and shall be inclusive of the following deliverables, at a minimum:

- a. Staffing Plan: The staffing plan is to define the roles and responsibilities of all personnel supporting the contract. The goal of the plan is to ensure the contract support staff is properly aligned to the strategic goals, mission, and objectives of TAP. The staffing plan shall also include the Contractor's organizational structure in support of the contract. The Contractor shall provide a detailed hiring plan and tracking tool that shows status of hiring at all locations including background checks, SOFA requirements, Personal Identification Verification (PIV) card issuance and start dates. The tracker shall include issues related to hiring and also be included on the Risk and Issues Matrix for mitigation. The Staffing Plan shall also demonstrate the Contractor's process for immediately identifying and taking appropriate remedial action in addressing Contractor personnel determined to be unacceptable in terms of technical competency or personal conduct in performance of contract activities. Contractor remedial actions shall be executed in a manner that does not disrupt or degrade the quality or timeliness of services. Only trained and qualified staff will be permitted to conduct Benefit Advisor (BA) activities and engage with transitioning Service members and Veterans. The Contractor shall create and maintain a staffing tracker.
- b. In-Processing Plan: The Contractor shall develop an In-Processing Plan that addresses in-processing of all personnel supporting this contract to include describing how to meet the learning needs of the BAs and Train-the-Trainers in the execution of TAP. The Contractor shall provide a tracking tool that shows status of in-processing and scheduled training.

- c. Training Plan: The Contractor shall outline, as part of the proposal, how new hires will be trained. The Contractor shall complete initial training of staff members to include VA badging within sixty (60) calendar days of effective date of the contract. All new hires shall be trained within sixty (60) calendar days throughout the period of performance.
- d. Operational Deployment Plan: The Contractor shall describe how contract personnel will be deployed to ensure little to no disruptions in the delivery of the VA mandated briefings as well as the plan to maintain operations throughout the course of the contract. The Operational Deployment Plan must meet ATTACHMENT F requirements.
- e. Curriculum Development Plan: The Contractor shall describe how contract personnel will be staffed to ensure little to no disruptions in the development and maintenance of the VA curriculum. The Contractor shall describe the plan to maintain the technical requirements and relevance of the curriculum throughout the course of the contract.
- f. Contractor Communication Plan: The Contractor shall outline the Contractor's roles and responsibilities of project participants in the review, approval and dissemination of information about key project processes, events, documents and milestones. The Contractor shall also provide an outline in the Contractor Communication Plan of these requirements specific to Government and subcontractor communication.
- g. Risk Assessment and Mitigation Plan: The Contractor shall conduct risk identification, risk analysis, risk management, and risk monitoring and reporting, focusing on the processes, resources and data sources critical to managing the project. Risk and issues shall be reported during the weekly update meetings as critical, high, medium, or low. A description shall be included of the risk/issue, the owner, progress made, and management strategy as applicable. Weekly status will be provided on each risk until they are closed out. The PM, COR or ACOR may request that a perceived risk or issue be added and tracked for the contract.
- h. Quality Control Plan (QCP): The Contractor shall provide a detailed QCP within 14 calendar days of contract award, based on the Quality Assurance Surveillance Plan (QASP) (ATTACHMENT G). The QCP shall be reviewed quarterly and if there are any changes, the updated QCP shall be submitted to the PM and COR. The QCP shall document the overall approach to quality assurance activities. The QCP shall provide specifics regarding how the Contractor defines, implements, and assures quality during the contract life. The Contractor's QCP will be integrated into the Government's Quality Assurance Surveillance Plan (QASP). The VA will create the QASP upon receipt of the Contractor's first QCP and will be updated as the QCP is updated. The Contractor shall maintain a Service Delivery Quality Management Report and submit the report to the government PM on a monthly basis.
- i. Transition Plan: The Contractor shall submit a Transition Plan that describes the process, details, and schedule for providing an orderly transition during the Contract's Phase in/Phase out period in accordance with the PWS. The initial transition period will start on the contract award date with 75 calendar days of transition using FAR 52.237-3 Continuity of Services. The Transition Plan will be completed by the Base year POP start date. The objectives of the Transition Plan are to: minimize the impacts on continuity of operations; maintain communication with staff and affected stakeholders; identify key issues; and overcome barriers to transition. The Contractor shall establish a transition management team capable of providing overall management and logistical support of all transition activities. TAP Operations will provide CONUS/OCONUS contacts to facilitate onboarding and service deployment.

The Contractor shall report the Transition Plan status to the PM, COR and CO at periodic meetings and through regular written reports during the Transition period. The Transition Plan shall include a status of all deliverables, current issues, problems, or activities in process that require immediate action.

Deliverable 7.1.A. Project Management Plan

7.1.B Task 1: Part B. Program Administration

In order to ensure all TAP curriculum development and revision, onsite support, training, data analysis, and strategic planning, coordination and implementation requirements are being met and coordinated in an efficient, accountable, and transparent model, it is imperative that the Contractor ensure that the contract is administered with a robust and integrated system of program administration. Such a system shall be implemented using a disciplined, comprehensive, and flexible program and project management process, including but not limited to adherence to the PMP; monitoring of project metrics; rigorous risk management; adherence to reporting on schedules, employee on-boarding and training, and maintaining required staffing. The Contractor shall identify any problems or concerns that have arisen in a timely manner and be prepared to provide a statement explaining the issue, how it was resolved, or an explanation as to why it has not been resolved, including any recommended mitigation strategies.

Proper coordination, oversight, and management of TAP Program Execution is of paramount importance. To this end, the Contractor shall implement a robust and flexible regional management model that provides the Government accurate and timely information on daily operations, to include prompt reporting of scheduling, staffing, and operational risks and issues. This regional management model must be implemented to allow for effective management of personnel in support of TAP Program Execution.

To facilitate efficient program administration and to support TAP onsite activities, the contractor shall utilize a knowledge management system that supports all aspects of TAP operations upon start of contract. This tool should be readily accessible by contractor staff and members of M2CR or Government staff, be centrally managed by the Prime contractor, and be flexible to support management activities, data collection and reporting, planning activities, training and curriculum activities, event scheduling, and act as a version control center and communication hub for all VA TAP products to the onsite support personnel. This tool must also allow for rapid collection, processing and reporting of program data to M2CR in support of recurring and short notice data calls.

Contractor key personnel (PWS Section 10.6) must be available during regular duty hours and provide same-day acknowledgement of government requests.

To ensure proper program management and communication, the Contractor shall prepare and participate in the following meetings and submit the following program reports:

1. WEEKLY MEETINGS
 - a. Weekly TAP Program Status Brief
 - b. TAP Operations Brief

- c. Weekly Curriculum 3P Briefing (Product, Project, or Process Development)
- 2. WEEKLY REPORTS
 - a. TAP Weekly Status Report
 - b. TAP Staffing and Training Roster
 - c. TAP Travel Worksheet
 - d. Curriculum Development Status Report
- 3. MONTHLY REPORTS
 - a. TAP Operations Monthly Report
 - b. Curriculum Development Monthly Report
 - c. Installation Facilities and Stakeholder Report
 - d. Service Delivery Quality Management Report
- 4. QUARTERLY MEETINGS
 - a. Quarterly Program Review
- 5. QUARTERLY REPORTS
 - a. TAP Operations Quarterly Report
 - b. TAP Curriculum Quarterly Report
 - c. QCP Review
- 6. ADHOC MEETINGS
 - a. Special Focus Meetings
- 7. ADHOC REPORTS
 - a. Ad Hoc New Curriculum Development, Integrated Product Team Adjudication
 - b. New Employee Sponsorship Request
 - c. Background Investigation (BI) Request
 - i. VBA BI Request Form
 - ii. OF-306
 - iii. Fingerprint Request Form
 - d. PIV Request
 - e. Quality Control Site Visit Report

Deliverable 7.1.B.1 Weekly Meetings

Deliverable 7.1.B.2 Weekly Reports

Deliverable 7.1.B.3 Monthly Reports

Deliverable 7.1.B.4 Quarterly Meetings

Deliverable 7.1.B.5 Quarterly Reports

Deliverable 7.1.B.6 ADHOC Meetings

Deliverable 7.1.B.7 ADHOC Reports

7.2 TASK 2 – TAP Program Execution

7.2.A TASK 2: Part A. TAP Onsite Support (*Benefits Advisors (BA)*)

VA supports and advances the ongoing implementation, assessment, and enhancement of TAP to assist Service members transitioning from military service to civilian life. As part of this effort, VA supports the military Services' transition assistance activities identified in 10 U.S.C. §1142, 10 U.S.C. § 1144, and the Memorandum of Understanding (MOU) between VA, DoW, DOL, and other interagency partners regarding TAP (ATTACHMENT E). To address these requirements, the Contractor shall implement a support concept which utilizes a regional hub-and-spoke model with regional command and control centers under the direction of VA TAP, providing command and control capabilities. The Contractor shall provide physical and permanent onsite support at installations with a high- or medium-demand and provide VA-approved support at installations with low demand. VA requires onsite support at permanent sites and itinerant sites, both CONUS and OCONUS, as outlined in ATTACHMENT F. The Contractor shall be able to maintain full operational coverage with fully qualified and trained personnel.

VA Benefits Advisors (BA): The Contractor shall provide qualified individuals who shall perform all TAP onsite support activities required by this contract and shall be referred to as "VA Benefits Advisor (BA) – [Contractor name]." In many instances, the BA is the first or only interaction between a Service member and VA regarding VA benefits and services. Because of this, it is critical to the success of this contract that these individuals have the utmost professionalism, superior customer service practices, knowledge and expertise, and ability to adhere to strict requirements for quality and consistency to ensure a positive experience for our customers. Due to VA's support concept for this contract which utilizes a regional hub-and-spoke model that takes into account historical event and attendance averages for permanent and itinerant sites, the Contractor shall maintain BA staffing levels to meet contractual requirements to support installation throughput as outlined in ATTACHMENT F. The Contractor is responsible for Temporary Duty (TDY) costs associated with filling vacant BA positions specified in ATTACHMENT F. The Government will not approve Other Direct Cost (ODC) costs for backfilling vacant BA positions in a TDY status. The Government may approve ODC costs for limited travel to support scheduled events at sites that may have vacancies to ensure VABS and other support continues.

All BAs shall establish and maintain a network with other related resource experts at their assigned locations, including but not limited to: Veteran Readiness and Employment (VR&E) Counselors, DOL VETS Staff and Instructors, military service TAP managers and staff, VA Military Service Coordinators (MSC), VA Overseas Military Service Coordinators (OMSC), VA M2CR staff, VHA homelessness program staff, health care liaisons, Military Sexual Trauma staff, mental health and suicide prevention staff, warrior transition staff, Vet Centers, and VA Medical Center and Regional Office staff. Such a network involves the BAs having up-to-date contact information of these personnel and ability to communicate with such personnel in order to facilitate a connection between the Service member and other resources as required. In addition to maintaining these relationships, BAs shall place VA-approved fliers and informational posters informing Service members of the VA presence at key locations around their duty post. BAs shall attend mandatory training as required by the government (i.e. trauma Informed Interactions, educational counseling).

In order to provide TAP onsite support services, BAs shall perform the requirements specified in Tasks 7.2.A.1 – 7.2.A.7. Group settings and locations may vary depending on installation facilities available and attendance, but primary instruction and services shall be provided in-person at a physical location (such as a classroom, auditorium, or conference room environment which is conducive to and setup for learning). The on-demand Military Life Cycle modules are offered in-person and via online learning platforms. All briefing and event materials which shall be used by the Contractor, including but not limited to participant guides, slides, and handouts, are provided by the Government. See ATTACHMENT F for historical frequency and event data.

Additional BA roles and responsibilities shall include the following:

- Provide all services on-site, or virtually when required, which may include telecommunications as necessary to support the Service member during the business hours established by the local facility. In instances in which in-person access to a Service member is restricted due to security or other limitations (primarily in certain OCONUS locations or to deployed Naval vessels), BA may provide support on a case-by-case basis via telecommunications (i.e. video and/or audio) methods as a last resort with COR approval.
- Ensure that the materials (digital or paper) provided to their location are correct and complete prior to sharing with the customer. This shall be accomplished via visual spot checks of participant guides upon receipt and visual verification of materials before handing out during a briefing. These materials generally include the VA Benefits and Services Participant Guides and handouts which may accompany MLC or Reserve and National Guard Component events.
- Facilitate pre-separation referrals.
- Handle sensitive and Personally Identifiable Information (PII) in accordance with established VA procedures and policies, as determined by the government.

7.2.A.1 TAP Onsite Support Reporting

BAs shall ensure that event management and timely reporting is conducted for each event specified in Tasks 7.2.A.1 – 7.2.A.7. The Contractor shall, on a daily basis, ensure that each BA completes VA approved data entry requirements (including but not limited to event schedules, information collected from Service members, attendance, demographic information, satisfaction, and event highlights) and enter required data in accordance with VA approved knowledge management system and in a format accessible by VA. This data shall be entered for each attendee who attends a VA TAP event to properly account for all field events and activities. Each event shall be reported by event type (i.e. VA Benefits and Services, one-on-one engagement, pre-separation counseling support, Capstone support, referrals, and Reserve/National Guard Component support). The Contractor shall ensure that event data is submitted within five (5) business days from the end of an event.

BAs shall monitor and report inventory status of VA materials provided to the contractor PM.

7.2.A.2 VA Benefits and Services Briefing

The VA Benefits and Services briefing is a mandatory component of TAP where VA

provides information on VA benefits and services to enable transitioning Service members to make informed decisions regarding the use of VA benefits. The VA Benefits and Services briefing helps attendees better understand VA benefits, programs, and services based on their needs during each phase of their transition and beyond in civilian life. These modules cover critical VA benefits, including but not limited to education, compensation, pension, vocational rehabilitation and employment, home loan guaranty, insurance, burial benefits, VA health care, and information and demonstrations on VA electronic tools and resources.

Designed around the understanding that no two transition experiences are the same, the VA Benefits and Services briefing is a full-day briefing with facilitated- and activity-based instructional modules, highlights of real stories and examples from Service members who have transitioned from civilian life, and introduction and instruction on how to find and connect with additional VA information, tools, and resources.

Historical throughput and number of VA Benefits and Services briefings (by installation) are referenced in ATTACHMENT F.

7.2.A.3 One-on-One Engagements

A one-on-one engagement is an individualized discussion that occurs between the BA and a Service member at any time throughout the Service member's career. During a one-on-one engagement, the BA shall leverage only VA-approved materials to facilitate an individualized conversation on the Service member's and/or their family's needs. During a one-on-one engagement, the Contractor shall perform the following tasks:

- Facilitate an individualized discussion to fully explain the benefits and services that may be available to the Service member, including information on time-sensitive benefits available to them while still in service (i.e., Personalized Career Planning and Guidance (Chapter 36), Veteran Readiness and Employment Services (Chapter 31), or Benefits Delivery at Discharge (BDD)); assist the Service member in enhancing their knowledge on VA benefits by using VA-approved resources to answer questions related to filing VA claims or applications of any kind; assist the Service member in finding an official VA resource (i.e., VA website, VA point of contact, or VA facility).
- The BA shall schedule one-on-one engagements during the specified duty day and in advance. The BA may provide walk-in one-on-one engagements on a case-by-case basis taking into consideration their availability. Moreover, while one-on-one engagements are generally intended to occur with a Service member, the BA may provide one-on-one engagements to a military spouse, caregiver, or survivor on a scheduled, space availability basis only.
- If the one-on-one engagement involves questions or concerns from the Service member that the BA is not trained to handle or does not have the requisite knowledge to respond, the BA shall utilize their network of other VA contacts to connect the Service member with the appropriate connection and resource.
- One-on-one support shall be conducted primarily in a face-to-face setting; however, these engagements may be conducted through virtual means, including email, telephonic, and through approved, secure virtual meeting technologies as requested by the Service member, military spouse, caregiver, or survivor.

7.2.A.4 Pre-Separation Counseling Support

Pre-separation counseling is a mandatory requirement in the military services in which they must provide transitioning Service members counseling on various benefits, programs, services, tools, and other important resource entitlements for which they may be eligible. Pursuant to NDAA 2019 (John S. McCain Act), the military services must provide each eligible transitioning Service member pre-separation counseling no later than 365 days before their expected date of separation or discharge from active-duty service, or as early as twenty-four (24) months prior to a Service member's anticipated retirement date. The military services' pre-separation counseling begins the transition assistance process for each Service member.

Included in the military services' pre-separation counseling sessions is an orientation on certain VA benefits and an overview of the mandatory VA Benefits and Services briefing that the Service member will attend as part of TAP. While the military services do not require or request VA support during all pre-separation counseling sessions, they may introduce a Service member to or request general information from local installation transition resources, which may include BAs at installations in which VA has a permanent presence. If a military service representative requests VA support or availability during or immediately following a Service member's pre-separation counseling session, the Contractor shall perform the following tasks:

- The BA shall provide in-person or virtual support for walk-in or requested support from the DoW TAP manager during or immediately following a pre-separation counseling session as a service only and will occur when the BA is not performing scheduled events or duties.
- The BA shall support pre-separation counseling sessions by providing general information about VA benefits and resources and assistance in locating contact information for installation and local VA resources.
- The BA shall also provide information on time-sensitive benefits available to the Service member while still in service (e.g., Personalized Career Planning and Guidance (Chapter 36), Veteran Readiness and Employment Services (Chapter 31), or Benefits Delivery at Discharge (BDD)). For Service members who require or request individualized assistance, the BA shall encourage the Service member to schedule a one-on-one engagement.
- If, during a pre-separation counseling session engagement, a Service member requires or desires follow-on assistance from the VA, the BA shall coordinate a referral to the appropriate VA personnel or office to address the follow-on assistance.
- To protect the sexual assault reporting rights of Service members, Benefits Advisors shall provide Service members with the SAFE Hotline at 877-995-5247 or refer Service members to the installation Sexual Assault Prevention and Response Office (www.sapr.mil)
- VA support for pre-separation counseling is scheduled as needed and provided as a service to the military TAP managers at installations with a permanent VA presence. This support shall be provided based only on the time and availability of the BA.

7.2.A.5 Capstone Support

The Capstone is a mandatory component of TAP where military commanders, or the

commanders' designees, verify that Service members have met their respective military service's Career Readiness Standards (CRS) and have a viable Individual Transition Plan (ITP). The purpose of the Capstone event is for the military service to evaluate a Service member's preparedness to successfully transition from a military to a civilian career. The Capstone event is the responsibility of the military service concerned.

Capstone events may be either individual or in group settings. While the military services do not require or request VA support during all Capstone events, the military services may request VA support at individual or group Capstone events. VA will pre-approve BA attendance at Capstone events and inform the Contractor in advance of approved Capstone events requiring their support. For VA-approved Capstone events, the Contractor shall perform the following tasks:

- The BA shall be available in-person or virtually to support approved individual or group Capstone events.
- The BA shall provide generalized information on and assistance in locating contact information for local and hometown VA resources, including how to find a local VA facility as well as any other community resources identified in the Benefits and Services briefings. For Service members who require individualized assistance, the BA shall encourage the Service member to schedule a one-on-one engagement.
- If, during a Capstone event, a Service member requires or desires follow-on assistance from the VA, the BA shall coordinate a referral to the appropriate VA entity that can address the required or desired follow-on assistance.
- The BA shall support and facilitate referrals upon the conclusion of a Capstone event as required.

7.2.A.6 Military Life Cycle Modules

VA provides information to Service members and their families at various touchpoints in their military careers to provide relevant, targeted information on VA benefits and services earlier in a Service member's career to provide them the tools necessary to plan for and use the benefits they have earned. VA provides services so that all Service members have an opportunity to take advantage of this information at key milestones within their military life cycle or major life event, such as moving duty locations, getting married, having a child, reenlisting, or retiring/separating from the military. VA provides this information through Military Life Cycle (MLC) modules, which are micro briefings that are focused on an individual benefit or service (ATTACHMENT C). All MLC briefing materials, participant guides, and instructor guides (ATTACHMENT D) will include all information, instruction, and resources necessary for the BA to facilitate the briefing.

Because MLCs are optional training, the military services may request VA schedule MLCs from VA's approved list of topics. VA will pre-approve BA briefing and inform the Contractor in advance of approved MLC briefings events requiring their support. For VA-approved MLC briefings events, the Contractor shall perform the following tasks:

- The BA shall follow VA-established procedures on setting up the briefing room (i.e. preparing materials for participants and preparing any required electronic equipment such as sound and computer(s)).

- The BA shall provide the MLC briefing in accordance with VA established procedures and in strict adherence to VA-provided instructor guidelines.
- The BA shall follow VA-established procedures on breaking down the briefing room (i.e. collecting participant feedback forms, collecting materials not in use, and securing any required electronic equipment such as sound and computer(s)).
- MLCs are micro-learning events and provided in-person and available online. MLC briefings shall generally not exceed one (1) hour in duration.

7.2.A.7 Warm Handovers

A warm handover is a mandatory component of TAP where military commanders, or the commanders' designees ensure that a Service member who does not meet their respective military service's CRS or does not have a viable ITP are connected to follow-on resources via a warm handover. If a commander is unable to verify the Service member has met their CRS, or if the member does not have a viable ITP, the commander, or the commander's designee will initiate a warm handover to the appropriate agency partner (i.e., VA, DOL, etc.) to connect that Service member with the appropriate support in the community where the Service member plans to relocate. If a commander requires support from a BA to facilitate a warm handover as defined in this task, the contractor shall follow established government procedures on ensuring a warm handover is provided to meet the individual needs of the Service member.

Deliverables

Task 7.2.A TAP Onsite Support (Benefits Advisors)

Task 7.2.A.1 TAP Onsite Support Reporting

Task 7.2.A.2 Conduct VA Benefits and Services Briefings

Task 7.2.A.3 Conduct One-on-One Engagements

Task 7.2.A.4 Pre-Separation Counseling

Task 7.2.A.5 Capstone Support

Task 7.2.A.6 Provide MLC Briefing

Task 7.2.A.7 Support Warm Handovers

7.2.B Reserve and National Guard Component Support (OPTION CLIN)

To promote the well-being of Reserve and National Guard members, their families, and communities, DoW facilitates the Yellow Ribbon Reintegration Program (YRRP). YRRP connects these members with resources throughout their deployment cycle through Yellow Ribbon events. At Yellow Ribbon events, Service members and their families are connected to resources before, during, and after deployments. Post-deployment Yellow Ribbon events occur during a critical time for Reserve and National Guard members who often live far from military installations and other members of their units. As such, Yellow Ribbon events often occur during times and at locations where these members can access information on the benefits and services which may be available to them and their families. This may include after hours, on weekends, and at locations off military installations. VA supports post-deployment and other Yellow Ribbon events by request of DoW to ensure that these members are provided with information on their available VA benefits, services, and programs. VA will pre-approve BA attendance at Reserve and National Guard Component support events and inform the Contractor in advance of approved events requiring their support. For VA-approved events, the Contractor shall

perform the following tasks:

- The BA shall provide the VA-approved briefing and materials specific to this event in accordance with VA established procedures and in strict adherence to VA-provided instructor guidelines.
- The BA shall also provide one-on-one engagements as requested or required by the Service member.
- The BA shall be available in-person or virtually for the duration of the approved event.

Deliverable 7.2.B Reserve and National Guard Component Support

7.3 TASK 3 – TAP Training

7.3.A New Hire Training

New Hire Training is the first step to becoming a BA. For an individual to qualify as and perform the duties of a BA, the BA must first attend and satisfactorily complete the new hire training. The new hire training shall be a ten-calendar day, comprehensive, standards-based, in-person/virtual classroom training program. This highly interactive, activity-based training is designed to provide BAs with all the requisite skills and information necessary to independently deliver the VA Benefits and Services briefing and conduct other onsite support requirements expected of a BA. The curriculum and materials for this training shall be developed by the Contractor and approved by the Government (See 7.4.D). In order to conduct the new hire training, the Contractor shall use Government approved curriculum, agenda and materials to conduct the ten-calendar day training program. The Contractor shall further provide and conduct pre-coursework (individual study); classroom-based instruction; practice opportunities; and participant evaluations. The Contractor shall provide Master Advisors at a ratio of 1:5 to assist in the execution of New Hire Training. Any variations shall be approved by the government (See 7.3.C). Further, the Contractor, in coordination with the government, shall conduct written and presentation evaluations to ensure BA skills demonstrate the appropriate knowledge of VA Benefits and Services as well as other onsite support requirements provided in the curriculum. The Contractor, in coordination with the Government, shall ensure that all BAs demonstrate proficiency in both written and presentation evaluations for the BA before they are permitted to conduct instruction.

The Contractor shall ensure that new hire trainings are scheduled and attended appropriately to anticipate and maintain appropriate staffing levels. The Contractor shall submit an ODC request to the COR for all projected New Hire Training costs, to include the venue and allowable ODC costs associated with the training event. The government will approve up to six New Hire Training Events annually. The Government will reimburse New Hire Training Costs for up to 30% BA attrition per year (Period of Performance). The Contractor shall be responsible for New Hire Training costs that exceed 30% attrition. Annual attrition rates will be determined using the government approved BA staffing requirements.

Advisor Assessments: BA and Trainer assessments are critical for evaluating and improving performance and development. At each phase of the New Hire training, the Contractor, in coordination with the Government, shall assess BA and Trainers on how well they are performing and monitor them on their performance. The Government will provide the training and performance standards.

The Contractor shall submit the VA TAP New Hire Training Closeout Report to the Government PM, COR and ACOR within 5 days of the completion of the training event.

Deliverable 7.3.A Conduct New Hire Training

7.3.B BA Refresher and Virtual Delivery Training

The Contractor shall conduct a short-term course, or set of courses, aimed at recall and reinforcement of previously acquired knowledge and skills with all the requisite skills and information necessary to provide TAP onsite support and Train-the-Trainer activities. The Government shall provide the materials necessary to conduct refresher training. To conduct refresher training, the Contractor shall:

- Schedule and provide refresher training courses in a virtual environment at least once per quarter. The Contractor shall utilize Trainers who have successfully completed a Train-the-Trainer session to conduct the refresher training.
- Ensure that each BA attends refresher training at least once per year.
- As refresher training is intended to provide recall and reinforcement to previously-acquired knowledge and skills, the Contractor assumes all costs associated with providing remedial training to correct an identified deficiency or quality issues, including travel.
- The Contractor shall submit the Refresher Training Closeout Report to the Government PM, COR and ACOR within 5 business days of the completion of the training event.

The Contractor shall provide training to conduct Virtual Delivery, designed to replicate on-site benefits and services delivery in a virtual environment. Virtual delivery platforms are intended to provide a similar level of interactive, instructor-led services that would traditionally be available for in-person Benefits and Services briefings. The current virtual delivery platform is Microsoft Teams. This training should include platform specific Benefits Advisor training and assessments to ensure that all BAs are capable and comfortable producing and providing the VA's Benefits and Services briefings and other VA virtual courses on the platform prior to briefing.

Deliverable 7.3.B.1 Conduct BA Refresher Training

Deliverable 7.3.B.2 Conduct Virtual Delivery Training

7.3.C Master Advisor Training

The Contractor shall provide Master Advisors who possess a Facilitator or Trainer certification. Master Advisors shall complete New Hire Training and subsequently complete the Master Advisor Training.

- The Contractor shall include the following in the Master Advisor Training: Conduct a 10-calendar day, comprehensive, standards-based, in-person/virtual classroom Master Advisor training session. The Contractor shall develop and provide this training utilizing a highly interactive, activity-based curriculum which is approved by the Government and

designed to provide Master Advisors with all the requisite skills and information necessary to successfully execute instructional Benefit Advisor training.

- At a minimum, prepare Master Advisors to train BAs to present information effectively, respond to participant questions, and lead activities that reinforce module objectives. Master Advisors should be able to have mastery of all modules and information utilized by the BAs and be able to instruct BAs on how to ensure participants are cognizant of supplementary resources and approved reference materials.
- Written and presentation evaluations, in coordination with the government, to ensure Master Advisor skills demonstrate knowledge of onsite support activities including VA Benefits and Services. Contractor shall ensure that all Master Advisors demonstrate proficiency in both written and presentation evaluations.
- Training sessions shall include at a minimum: classroom-based instruction; practice opportunities; and evaluation. The Government will provide the training standards and performance standards.

Deliverable 7.3.C Conduct Master Advisor Training

7.4 TASK 4 - TAP Curriculum

The Contractor shall have proven experience in all phases within the Instructional Systems Design (ISD) methodology and provide sufficient expertise and support personnel to perform activities to include all phases within the methodology and Blooms Revised Taxonomy. This task includes all the ISD support activities necessary to analyze, design, develop, create new training materials as well as sustain, update, and reconfigure training materials and products across the TAP curriculum supporting transitioning Service members, Veterans, families and caregivers. The Contractor shall provide expertise and support personnel and proven experience to perform activities that include but are not limited to, needs assessment, test design, curriculum design document, formative and summative evaluation, usability testing, course validation, test reliability and validity, diagnostic testing, job and task analysis, front end analysis, training situation analysis, competency alignment, proficiency assessments, performance support systems and updates and maintenance as required. For each task assigned, the contractor shall identify all assumptions as to scope of required activities and number and type of components along with their technical approach to completing the work. The Contractor shall submit a monthly report that documents the type and description of training design and development work in progress and completed, issues and coordination with SMEs, activities completed and remaining, and other information as may be required by the Government project manager and according to the Government-approved PMP.

Curriculum Design, Development, Revision and Support Package

Each TAP course or training module developed (new or revised) by the Contractor shall be uploaded to a VA network. All TAP curriculum development shall meet the standards outlined in the VA Transition Assistance Program Curriculum Development and Revision Standard Operating Procedure (SOP) (ATTACHMENT Z). The Curriculum Development tasks may be modified in writing by the VA as prescribed by the curriculum.

The Contractor shall develop instructional materials for a variety of delivery modalities to include, but not limited to: Face-to-Face Instructor Led, Asynchronous Web-based training, Virtual Instructor Led Training. The Contractor shall develop instructional materials using

Articulate360-Storyline, PowerPoint, Adobe InDesign, and other VA-approved audio/visual development tools to enhance transitioning Service members' knowledge of VA benefits, services and resources and may include, but are not limited to, interactive computer-based training, lesson plans, instructor guides (ATTACHMENT B), facilitator guides, online resource guides, activity handbooks, web-based and print participant guides, job aids and performance support tools, which support all modalities of delivery.

During the design process, the Contractor will coordinate all design and development of materials with the assigned Government Project Manager, who will serve as the primary Point of Contact (PPOC), for development initiatives, and the lead for coordination between the Contractor, and VBA Subject Matter Experts (SMEs) to ensure a full understanding of the training requirements, learning approaches, instructional materials, job task analysis (JTA) data, learning analysis, test items, and summative and formative evaluation to meet the intended requirements.

Pilot programs shall be conducted during government-prescribed dates and before initial delivery, to provide verification of the content with SMEs and validation of the courseware with target audience members. The Contractor shall ensure that curriculum design appropriately addresses the associated modification, design, development, and delivery of basic through advanced training programs. The Contractor shall conduct 508 testing on all training products, correct any issues, and provide the final 508 report to the Government as part of the training product delivery package. The Contractor shall correct any issues from the VA 508 remediation team. The Contractor shall have proven experience in the ability to provide, test, and remediate as needed Section 508 compliant instructional materials.

7.4.A VA Benefits and Services Curriculum

The Contractor shall develop and revise VA Benefits and Services Curriculum that supports Task 7.2.A.2. The curriculum and materials shall support synchronous/asynchronous, instructor-led, and virtual instructor-led delivery of VA Benefits and Services training that is modular, interactive, activity-based, facilitated and lasts no longer than eight hours including breaks and lunch. The final deliverables will include a SCORM package and slide presentations (with graphics, videos and multimedia embedded), classroom activities, worksheets and handouts, and facilitator/instructor and participant guides.

Deliverable 7.4.A VA Benefits and Services Curriculum

7.4.B Women's Health Transition Training Curriculum

The Contractor shall maintain and revise the Women's Health Transition Training curriculum. The curriculum and materials shall support asynchronous online (web-based training) delivery training that is modular, interactive, activity-based, and not to exceed three hours. The final deliverables will include a SCORM package and slide presentations (with

graphics, videos and multimedia embedded), participant level 2 engagement activities, and participant handbook.

Deliverable 7.4.B Women's Health Transition Training Curriculum

7.4.C Military Life Cycle (MLC) Curriculum

The Contractor shall develop and/or revise MLC Curriculum that supports Task 7.2.G. The Contractor shall develop MLC Curriculum that supports Task 7.2.G. The Contractor shall develop or revise up to 8 of the VA current MLC module offerings annually to support Task 7.2.G. The curriculum and materials shall support synchronous, instructor-led, and virtual instructor-led delivery in a modular, interactive, activity-based, facilitated and not to exceed one hour. The final deliverables will include SCORM packages, slide presentations (with graphics, videos and multimedia embedded), classroom activities, worksheets and handouts, facilitators' guides and online resource guides.

Deliverable 7.4.C MLC Curriculum

7.4.D New Hire Training Curriculum Development

The Contractor shall develop and revise New Hire Training curriculum that supports Task 7.3.A. The New Hire Training Curriculum will support the ten calendar-day, comprehensive, standards-based, in-person/virtual classroom training program. New Hire Training Curriculum shall be highly interactive, activity-based training that provides BAs with all the essential skills and information necessary to independently deliver the VA Benefits and Services briefing and conduct other onsite support requirements expected of a BA. The government will provide the Contractor with guidance for developing New Hire Training curriculum. The Contractor shall use this guidance to develop the training curriculum, agenda, and materials to support New Hire Training. The Government will provide final approval for the training curriculum. The Contractor shall provide and conduct pre-coursework (individual study), classroom-based instruction, and practice opportunities. The curriculum shall include oral and written presentation evaluations that evaluate BA presentation skills and knowledge of VA Benefits and Services as well as other onsite support. New Hire Training Curriculum will be updated annually, or when directed by VA policy updates.

New Hire training Curriculum includes:

- Benefit Advisor Guide
- Master Advisor Guide
- Evaluation Tool(s) for measuring new hire delivery of the course
- Written assessment for measuring new hire knowledge
- Prescribed New Hire Training Agenda

- Quick Start Guide (Connecting Your Equipment (Set-up))
- Classroom Activity Support Materials (Worksheets and Handouts)
- Study Guides
- New Hire Training curriculum revision (as directed by the government)

Deliverable 7.4.D New Hire Training Curriculum Development

7.4.E BA Refresher Training and Virtual Delivery Curriculum Development

The Contractor shall develop and revise BA Refresher Training Curriculum to support Task 7.3.B. This curriculum shall be designed to reinforce previously acquired knowledge and skills. The modules will be determined by the Government and will consist of topics to assist BAs in three areas: classroom management, facilitation skills, and soft skills training, each will align with presentation requirements and standards. The modules must be 20–30-minutes long.

BA Refresher Training Curriculum includes:

- BAS Annual Updates PowerPoint Slide Presentation
- Classroom Management WBT Module
- Facilitation 101 WBT Module
- Soft Skills Training WBT Module
- Maintenance of Refresher Training Evergreen Repository

The Contractor shall develop and revise Virtual Delivery training curriculum to support Task 7.3.B. This curriculum includes:

- Microsoft Teams virtual Classroom Materials
- Quick Start Guide
- Facilitator Guide

Deliverable 7.4.E.1 BA Refresher Training Curriculum Development

Deliverable 7.4.E.2 Virtual Delivery Training Curriculum Development

7.5 Task 5 – Strategic Action Planning, Coordination and Implementation, and Data Analysis:

7.5.A. Strategic Action Planning, Coordination and Implementation

The Contractor shall support TAP leadership in identifying and assessing opportunities to modernize TAP to increase efficiency and effectiveness of the program and in alignment with VA goals. Contractor shall recommend highest ROI initiatives and develop a strategic action plan based on VA decisions to implement selected modernization initiatives. Contractor shall coordinate and integrate with VA, interagency, and other partners to pilot

selected TAP modernization initiatives, approved by the Government PM and COR. The Contractor shall track and report on progress toward the achievement of TAP strategic action plan and approved modernization implementation plans; identify and overcome potential barriers to success. Successful pilots may be brought to scale through modification.

Deliverable 7.5.A.1 Strategic Action Plan

Deliverable 7.5.A.2 Modernization Initiative Implementation Plans

Deliverable 7.5.A.3 Strategic Plan Progress Update (Semi-Annual)

Deliverable 7.5.A.4 Coordination and Implementation Tracker (Monthly)

7.5.B. Data Analysis and Program Evaluation

The Contractor shall conduct data analysis to identify gaps and emerging areas regarding transition assistance to inform the strategic action plan and adjustments to the plan and TAP.

In conducting data analysis, the contractor shall use VBA, GIS, and other data sources, such as other administrations and offices (VA, DOL, and DoW) as well as data collected from other organizations through surveys, interviews, and focus groups.

The Contractor shall develop and conduct analytics as required. The Contractor shall develop, implement, and evaluate a performance analysis framework, offering approaches to measure and improve components of TAP to best meet VA goals and VA program outcomes, supported by robust evaluation and data analytics. Under this task, the Contractor may be asked to create reports and/or dashboards to support the performance analysis framework. Performance analysis may include reviewing objectives, recommending clear evaluation criteria, collecting and synthesizing data, conducting gap and SWOT analyses, interpreting the findings and drafting detailed reports. The Contractor may also provide actionable recommendations, develop strategic action plans and support the implementation of results for continuous improvement. Support will include producing program execution performance metrics on a monthly and ad hoc basis.

Deliverable 7.5.B.1 Performance Analysis Framework

Deliverable 7.5.B.2 Performance Analysis Framework Update (Semi-Annual)

Deliverable 7.5.B.3 Data Mapping Report (Quarterly)

Deliverable 7.5.B.4 Data Analysis Reports (Monthly)

8. DELIVERY SCHEDULE

PWS Task	Deliverable	Frequency	Delivery Method	Received By
7.1.A	Project Management Plan (PMP)	Initial/As needed	Electronic submission	PM/COR
7.1.B.1	Weekly Meetings	Weekly	TEAMS	PM/COR
7.1.B.2	Weekly Reports	Weekly	Electronic submission	PM/COR
7.1.B.3	Monthly Reports	Monthly	Electronic submission	PM/COR
7.1.B.4	Quarterly Meetings	Quarterly	TEAMS	PM/COR
7.1.B.5	Quarterly Reports	Quarterly	Electronic submission	PM/COR
7.1.B.6	ADHOC Meetings	As needed	TEAMS	PM/COR
7.1.B.7	ADHOC Reports	As needed	Electronic submission	PM/COR
7.2.A	TAP Onsite Support Daily Operational Coverage	Daily	Onsite	PM/COR
7.2.A.1	TAP Onsite Support Daily Data Reporting	Daily	Electronic submission	PM/COR
7.2.A.2	Conduct VA Benefits and Services Briefings	As scheduled	Onsite/Virtual	SM/COR
7.2.A.3	Conduct One-on-One Engagements	As scheduled	Onsite/Virtual	SM/COR
7.2.A.4	Pre-Separation Counseling	As scheduled	Onsite/Virtual	SM/COR
7.2.A.5	Capstone Support	As scheduled	Onsite/Virtual	SM/COR
7.2.A.6	Provide MLC briefing	As scheduled	Onsite/Virtual	SM/COR
7.2.A.7	Warm Handovers	As scheduled	Onsite/Virtual	SM/COR
7.2.B	Reserve and National Guard Component Support	As scheduled	Onsite/Virtual	SM/COR
7.3.A	Conduct New Hire Training	As scheduled	Onsite/Virtual	Contractor/COR
7.3.B.1	Conduct BA Refresher Training	As scheduled	Onsite/Virtual	Contractor/COR
7.3.B.2	Conduct Virtual Delivery Training	As scheduled	Onsite/Virtual	Contractor/COR
7.3.C	Conduct Master Advisor Training	As scheduled	Onsite/Virtual	Contractor/COR
7.4.A	VA Benefits and Services Curriculum	As scheduled	Electronic submission	PM/COR
7.4.B	Women's Health Transition Training Curriculum	As scheduled	Electronic submission	PM/COR
7.4.C	Military Life Cycle (MLC) Curriculum	As scheduled	Electronic submission	PM/COR
7.4.D	New Hire Training Curriculum Development	As scheduled	Electronic submission	PM/COR
7.4.E.1	BA Refresher Training Curriculum Development	As scheduled	Electronic submission	PM/COR
7.4.E.2	Virtual Delivery Training Curriculum Development	As scheduled	Electronic submission	PM/COR
7.5.A.1	Strategic Action Plan	One-time	Electronic submission	PM/COR
7.5.A.2	Modernization Initiative Implementation Plans	Semi-annual	Electronic submission	PM/COR
7.5.A.3	Strategic Plan Progress Update	Semi-annual	Electronic submission	PM/COR
7.5.A.4	Coordination and Implementation Tracker	Quarterly	Electronic submission	PM/COR
7.5.B.1	Performance Analysis Framework	One-time	Electronic submission	PM/COR
7.5.B.2	Performance Analysis Framework Update	Semi-Annual	Electronic submission	PM/COR
7.5.B.3	Data Mapping Report (Quarterly)	Quarterly	Electronic submission	PM/COR
7.5.B.4	Data Analysis Reports (Monthly)	Monthly	Electronic submission	PM/COR

9. Performance Metrics

9.1. Quality Assurance Surveillance Plan (QASP).

In accordance with 7.1.A Project Management Plan, the Contractor shall provide a detailed QCP within 14 calendar days of contract award, based on ATTACHMENT G. The QCP shall be reviewed quarterly and if there are any changes, the updated QCP shall be submitted to the PM and COR. The QCP shall document the Contractor's overall approach to quality assurance activities. The QCP shall provide specifics regarding how the Contractor defines, implements, and assures quality during the contract life. The Contractor's QCP will be integrated into the Government's Quality Assurance Surveillance Plan (QASP). The VA will create the QASP upon receipt of the Contractor's first QCP and will be updated as the QCP is updated.

9.2. Acceptance or Rejection of Deliverables

Deliverables are due in accordance with the delivery schedule. Deliverable due dates will be established at the kick-off meeting. Unless otherwise agreed upon, the Government will have three (3) business days to review each deliverable and provide feedback/comments. The contractor shall have two (2) business days to incorporate feedback/comments and make appropriate revisions. The contractor shall be responsible for adhering to all pertinent VA standards including but not limited to ensuring that all documentation and deliverables are stored

on appropriate VA servers within one week of their completion. The Government will provide guidance on the appropriate templates, style guides, detailed requirements, and any specific background information to support each requested deliverable.

For QASP purposes, acceptable quality level ratings will be determined using first time acceptance of deliverables. All rejected deliverables will be documented by the COR/ACOR and used to calculate acceptable quality level percentage.

9.3. Acceptable Quality Level

Task	Sub-	Deliverable	Indicator	Standard	AQL	Method of Surveillance	Incentive	
Program Management and Administration	7.1.A	Project Management Plan (PMP)	Deliverables are accurate and meets PWS task requirement	First time acceptance of deliverables by the government	95%	100% Inspection	QASP Rating: EXCEPTIONAL AQL = 100% VERY GOOD AQL = 95% to 99% SATISFACTORY AQL = 90% to 94% MARGINAL AQL = 80% to 89% UNSATISFACTORY AQL = 79% or less	
	7.1.B.1	Weekly Meetings	Deliverables are on schedule	Deliverables received IAW/ delivery schedule	100%	100% Inspection		
	7.1.B.2	Weekly Reports						
	7.1.B.3	Monthly Reports	Key personnel are available to provide same-day acknowledgement of requests	Available during regular duty hours to provide same-day response	100%	100% Inspection		
	7.1.B.4	Quarterly Meetings						
	7.1.B.5	Quarterly Reports						
	7.1.B.6	ADHOC Meetings						
7.1.B.7	ADHOC Reports							
TAP Program Execution	7.2.A	TAP Onsite Support Daily Operational Coverage	Contractor must be able to maintain full operational coverage with fully qualified and trained personnel	Maintain minimum BA staffing requirements approved by the government	95%	Periodic Inspections / Weekly Reports		
	7.2.A.1	TAP Onsite Support Daily Data Reporting	BAs perform all TAP onsite support activities	BAs perform specified Tasks	100%	Periodic Inspections / Weekly Reports		
	7.2.A.2	Conduct VA Benefits and Services Briefings						
	7.2.A.3	Conduct One-on-One Engagements	Deliverables are accurate	First time acceptance of deliverables by the government	95%	100% Inspection		
	7.2.A.4	Pre-Separation Counseling						
	7.2.A.5	Capstone Support	Deliverables are on schedule	Deliverables received IAW/ delivery schedule	100%	100% Inspection		
	7.2.A.6	Provide MLC briefing						
	7.2.A.7	Warm Handovers						
7.2.B	Reserve and National Guard Component Support							
Training	7.3.A	Conduct New Hire Training	Trained and qualified BAs and MAs to support TAP mission	Conduct scheduled training events IAW PWS standards	100%	100% Inspection		
	7.3.B.1	Conduct BA Refresher Training		Training completed on schedule	100%	100% Inspection		
	7.3.B.2	Conduct Virtual Delivery Training		First time acceptance of Training Closeout Report by the government	95%	100% Inspection		
	7.3.C	Conduct Master Advisor Training						
TAP Curriculum	7.4.A	VA Benefits and Services Curriculum	Deliverables are accurate	First time acceptance of deliverables by the government	95%	100% Inspection		
	7.4.B	Women's Health Transition Training Curriculum						
	7.4.C	Military Life Cycle (MLC) Curriculum						
	7.4.D	New Hire Training Curriculum Development	Deliverables are on schedule	Deliverables received IAW/ delivery schedule	100%	100% Inspection		
	7.4.E.1	BA Refresher Training Curriculum Development						
	7.4.E.2	Virtual Delivery Training Curriculum Development						
Data Analytics and Reporting	7.5.A.1	Strategic Plan	Deliverables are accurate	First time acceptance of deliverables by the government	95%	100% Inspection		
	7.5.A.2	Modernization Initiative Implementation Plans						
	7.5.A.3	Strategic Plan Progress Update	Deliverables are on schedule	Deliverables received IAW/ delivery schedule	100%	100% Inspection		
	7.5.A.4	Coordination and Implementation Tracker						
	7.5.B.1	Performance Analysis Framework						
	7.5.B.2	Performance Analysis Framework Update						
	7.5.B.3	Data Mapping Report (Quarterly)						
	7.5.B.4	Data Analysis Reports (Monthly)						

9.4. Documenting Performance

The Government shall document Contractor performance in accordance with the chart above.

If Contractor performance is assessed as Marginal or Unsatisfactory at any time during contract period of performance, the COR shall notify the CO. This will always be in writing although when circumstances necessitate immediate verbal communication, that communication will be followed in writing.

If the CO determines formal written communication is required, the CO shall prepare a Contract Discrepancy Report (CDR) and present it to the contractor's program manager.

The Contractor shall acknowledge receipt of the CDR in writing to the CO. The CDR will state how long after receipt the contractor has to take corrective action. The CDR will also specify if the contractor is required to prepare a corrective action plan to document how the contractor shall correct the unacceptable performance and avoid a recurrence. The CO shall review the

Contractor's corrective action plan to determine acceptability.

Any CDRs may become a part of the supporting documentation for any contractual action deemed necessary by the CO.

10. ADDITIONAL REQUIREMENTS

10.1. Schedule for Deliverables

If for any reason the scheduled time frame for a deliverable cannot be met, the Contractor shall explain why (include the original deliverable date) in-writing to the CO within three (3) business days from the scheduled delivery date, including a firm commitment of when the work shall be completed. This notice to the CO shall cite the reasons for the delay and the impact on the overall project. The CO will then notify the facts and issue a response in accordance with applicable regulations.

10.2. Changes to the Performance Work Statement

Any changes to this PWS shall be authorized and approved only through written correspondence from the CO through execution of a modification. Costs incurred by the Contractor through the actions of parties other than the CO shall be borne by the Contractor.

10.3. Other Direct Costs

Other Direct Costs (ODC) to include but not limited to travel, training location requirements and the government approved supply list will be reimbursed at Contractor cost only when requested and pre- approved by COR. Within sixty (60) calendar days of award of the contract, the Contractor will be responsible for completion of a site survey to identify any supplies/equipment that will be required for the successful completion of PWS tasks. If any additional supplies/materials are necessary for the successful execution of PWS tasks, the Contractor shall obtain these items with COR approval.

The Government will not approve ODC costs for temporarily backfilling vacant BA positions in a TDY status (See section 7.2.A).

The Government will approve ODC costs for up to six New Hire Training Events annually. The Government will reimburse New Hire Training costs (to include travel) for up to 30% BA attrition per year (Period of Performance). The Contractor will be responsible for New Hire Training costs (to include travel) that exceed 30% attrition. Attrition rates will be determined using the government approved BA staffing requirements in accordance with ATTACHMENT F and the Contractors Staffing and Training Roster. (See section 7.3.A).

An approved list of office supplies and equipment will be provided by the CO. The Contractor can request in writing to add or remove items from this list. No IT equipment, printers, or internet services, to include Wi-Fi or Mi-Fi, will be included in the ODCs.

Each Contractor's invoice must include copies of all receipts that support the ODCs claimed in the invoice and written substantiation for the incurred costs. Total ODC shall not exceed the ODC amount in the price schedule.

The Contractor shall provide all employees with computers, mobile phones, and other IT equipment and items necessary to perform the taskings of this PWS. All computers shall include the most current version of Windows, Microsoft Office and shall have Adobe installed. IT software upgrades are not reimbursable under ODCs. The Contractor has sole discretion in determining appropriate IT equipment, phones, and other devices to provide as Contractor Furnished Property (CFP) as long as it meets standards set forth by National Institute of Standards and Technology. These items will be considered CFP and not tracked as Government Furnished Property (GFP).

Due to the data size of ODC invoice files, the supporting documentation for ODC invoices (to include receipts) will be uploaded to a SharePoint site (or similar site) that can be accessed by the COR.

10.4. Travel

Travel and per diem will be reimbursed in accordance with Federal Acquisition Regulation 31.205-46, Federal Travel Regulations, and VA Travel Regulations. The Contractor shall submit invoices that include copies of all receipts that support the travel costs claimed in the invoice. Travel must be pre-approved by the COR. Travel must be priced separately in the price schedule. Local travel within a 50-mile radius from the Contractor's facility or home record (travel start point) is considered the cost of doing business and will not be reimbursed unless prior approval is obtained from the COR. This includes travel, subsistence, and associated labor charges for travel time. Travel performed for personal convenience and daily travel to and from designated duty location will not be reimbursed. Travel, subsistence, and associated labor charges for travel time for travel beyond a 50-mile radius of the Contractor's facility are authorized on a case-by-case basis and must be pre-approved by the COR.

Milage expenses require a Google map (or equivalent) referencing travel route and milage.

Travel will be necessary in the United States and overseas on a continual basis. Total travel cost shall not exceed the travel amount in the price schedule. The Government will not be responsible for any relocation expenses associated with moving Contractor personnel (even if a replacement is required) to the Washington, DC, commuting area or other job sites as may be identified either initially, or if necessary, with replacement of personnel.

10.5. Government Furnished Information, Equipment, and Facilities

The Contractor shall complete a site survey to identify any supplies/equipment that will be required for the successful completion of this PWS. At the time of execution, if the Contractor identifies any additional supplies/materials necessary for the successful completion of the required briefings, the Contractor shall obtain COR approval prior to obtaining these items. These additional supplies/materials are the responsibility of the Contractor. Throughout performance of the contract, the Contractor shall identify any necessary Government furnished equipment (GFE) and submit request for approval and action by COR.

The Government will facilitate facility space (office space) at locations identified in ATTACHMENT F for all personnel at those onsite support locations. If sufficient office space is unavailable at the location, the Government may allow for remote support to those locations with Government PM and COR approval.

All VA policies related to networked computer use shall apply. Personal identification verification (PIV) cards shall be required for all contractor personnel that require VA network access/accounts. Contractor personnel shall complete VA's Privacy and Information Security Awareness and Rules of Behavior training before networked computer access shall be granted. The training will be completed in VA Talent Management System (TMS 2.0). Training certificates must be reported to the COR and not be allowed to expire during the period of performance.

10.6. KEY PERSONNEL

Skilled experienced professional and/or technical personnel are essential for successful contractor accomplishment of the work to be performed under this effort. These are defined as individuals crucial to the successful performance of the orders issued and the programs being supported by those orders and are those persons identified as key personnel in accordance with solicitation requirements. The Contractor agrees that the key personnel shall not be removed, diverted, or replaced from work without prior notification of the CO. Contractor staff shall be fully qualified and have the level of experience necessary to accomplish the requirements of this PWS, as well as those requirements outlined in Section 10. The following labor categories are required.

- **Program Manager:** Minimum Qualifications: Bachelor's degree with 12 years of project manager experience including 5 years relevant experience in managing operations defined in this PWS and 5 years with demonstrated expertise in leading teams and managing programs of national scope in the Federal Government or DoW. Experience with managing and controlling SCA contracts and familiarity with applicable SOFA programs, requirements, and systems. Shall also possess and maintain Project Management Professional (PMP) certification, or equivalent industry recognized PM certification, throughout the duration of the contract. The Program Manager shall have a proven track record of engaging with related agencies at a senior level to foster collaboration and ensure strategic alignment. The Program Manager shall be a full-time employee of the offeror.
- **Curriculum Design and Development Lead** – Minimum Qualifications: Master's degree in the field of curriculum development and instructional system design; (5) years of relevant experience in managing curriculum projects defined in this PWS. Experience in managing curriculum development programs, including course materials, script, exercises, and classroom or self-study manuals and other teaching aids. Must possess relevant experience in managing multiple day training programs that include design and implementation of course material and coordinating multiple location travel.
- **Project Manager - TAP Operations Lead** – Minimum Qualifications: Bachelor's degree with 6 years of relevant experience in managing operations defined in this PWS with demonstrated expertise in leading teams and managing projects of national scope in the Federal Government or DoW. Proven experience in managing the day-to-day operations of a geographically dispersed workforce and issuing directives and schedules necessary to ensure effective project management.

- **Project Manager - Data Analytics Lead** – Minimum Qualifications: Bachelor’s degree in Data Analytics, Statistics, Computer Science, or a related field with 10 years of relevant experience in managing projects defined in this PWS, including 5 years supporting similar initiatives within Federal Government or DoW. Proven experience in the management of government program data collection, modeling, analyses, and product generation. Experience in preparing executive level reports, briefings, and documentation deliverables.
- **Substitution of Personnel:** Any personnel the Contractor offers as substitutes shall have the ability and qualifications, including educations and experience, equal to or better than the key personnel whose biography was submitted with the successful proposal. Requests to substitute personnel shall be provided to the CO for review and approval. All notification of substitutions in key personnel shall be submitted to the CO at least 15 calendar days prior to making and change in key personnel, to the maximum extent practicable. The notification shall be in writing and shall provide a detailed explanation of the circumstances necessitating the proposed substitution. The Contractor shall submit a complete biography/resume for the proposed substitute, and any other information requested by the CO. The CO will evaluate such requests and promptly notify the Contractor of approval or disapproval thereof in writing.

10.7. CONTRACTOR EXPERIENCE REQUIREMENTS – All Personnel

All Contractor personnel are expected to be proficient using office automation equipment and software and have sufficient written and verbal communication skills to support VA. Additionally, Contractor personnel are expected to maintain professional conduct that portrays the VA positively. Should any Contractor personnel be determined to be unacceptable in terms of technical competency or unacceptable personal conduct while on-site or while working on contract activities, the Contractor shall immediately remove and replace the unacceptable on-site personnel at no additional cost to the Government. Contractor personnel are to serve in a support role; final decisions regarding VA business will always be made by Government personnel. Given that this contract represents a continuation of services that have been in place for multiple years, the contract shall give priority to individuals who have supported the effort over hiring new individuals, if possible. However, if the current individual is not able to perform the work to an acceptable level, it is understood that he/she would not be hired to support this contract.

All Contracted personnel must meet required Personal Security requirements.

At least 4 contractor employees shall have full time interface capability with VA in order to upload documents to the VA Network.

In accordance with 38 U.S. Code § 4212 - Veterans’ employment emphasis under Federal contracts, the Contractor shall take affirmative action to employ and advance in employment qualified covered veterans.

11. SECURITY - VA Information and Information System Security/Privacy Requirements

11.1 General

All Contractors and Contractor personnel shall be subject to the same Federal security and

privacy laws, regulations, standards, and VA policies as VA, including the Privacy Act, 5 U.S.C. §552a, and VA personnel, regarding information and information system security. Contractors must follow policies and procedures outlined in VA Directive 6500, Information Security Program; and VA Handbook 6500.6. See attached VA 6500.6 Appendix C, which is incorporated in the resulting Task Order to ensure appropriate security controls are in place.

11.2 Contractor Personnel Security

Any individual who requires access to the VA site(s), personally identifiable information (PII) and/or access to VA local area network (LAN) systems shall be the subject of a favorable fingerprint check (SAC) adjudicated by VBA Personnel Security Office (PERSEC). Individuals are required a background investigation and must receive a favorable adjudication from the VA Personnel Security and Adjudication Center (PSAC). These requirements are applicable to all sub-contractor personnel requiring any Background Investigation (BI) conducted by Defense Counterintelligence Security Agency (DCSA).

The level of BI will be in accordance with VA Directive 0710 dated June 4, 2010. Background Investigation: The Contractor employee level of background investigation required for this effort is:

- NCHC/ Fingerprints Only – CONUS based Benefits Advisors
- Low Risk (T1) Security – OCONUS based Benefits Advisors, all other employees that require PIV card
- Moderate Risk (T2) Security – When designated by PM or COR

Note: The position sensitivity should reflect the results from the completion of the PDAT versus the title of the individual.

Sponsorship: Immediately after contract award, the Contractor will submit a USAccess sponsorship request form to the COR for all contracted employees. The COR will provide the sponsorship request template. When VA sponsorship is complete, the contracted employee will be emailed instructions for initiating the enrollment process for fingerprinting.

Investigation Documents: Immediately after contract award, the COR will request the Contractor PM access to the VA-Personnel Security Adjudication Center's (PSAC) Personnel Security Investigation Portal (PSIP). Once access is granted, the Contractor will submit all background investigation requests with the required documents into PSIP for contract employees working on the contract who will have access to VA/VBA facilities, VA systems, or privacy data:

- a. Background Investigation Request Worksheet
- b. Optional Form 306 – Declaration for Federal Employment
- c. Fingerprint Request Form

Upon review of the above documents in PSIP, the COR will submit the background investigation package to VBA's Personnel Security Specialist (PERSEC) in PSIP. After the background investigation package is submitted, the COR will initiate the PIV provisioning process, for contractors that require a PIV, in the VA's Account Provisioning/Deprovisioning System. Thereafter, the Contractor shall receive an email notification from DCSA including detailed instructions regarding completion of the background clearance application process in the

Electronic Questionnaires for Investigations Processing (e-QIP) system. e-QIP is an online, internet accessible system, where the Contractor employee shall complete the security questionnaire required for OPM to process background investigation. Once the e-QIP is released by VBA PERSEC, scheduled by OPM, the Contractor may begin work while the background investigation is ongoing. Contracted employees are expected to meet all of the government suspenses associated with the background investigation and PIV provisioning process.

Reciprocation: Contractors who have current favorable background investigation previously conducted by OPM or DCSA may be accepted through reciprocation. When a previous personnel security clearance is currently held, it does not preclude the Contractor from submitting a complete Background Investigation Package to the COR immediately after contract award for all Contractor employees who will be working on the resulting task orders written against the Task Order.

Pre-Screen: The Contractor shall prescreen all personnel who require access to VA site(s) and/or access to VA LAN systems to ensure they maintain a U.S. citizenship or Alien Registration that authorizes them to work in the U.S., and are able to read, write, speak, and understand the English language.

Contractor Performance: Contractor performance shall not commence before:

The VBA has confirmed favorable fingerprint results, or PSAC confirms that it has received the Contractor's investigative documents, the documents are complete, and that the background investigation information has been released to OPM for scheduling of the background investigation, or VBA or the PSAC has confirmed that the verified investigation will be reciprocated.

Copy of Certificate of Investigation (COI): VBA PERSEC will upload the Certificate of Investigation when the background investigation has been favorably completed or a Certificate of Eligibility (Form 4236) if the investigation has been reciprocated in PSIP. The Contractor, if notified, of an unfavorable adjudication by the Government, shall withdraw the employee from consideration from working under the contract. Failure to comply, the Contractor personnel security requirements may result in termination of the contract for default.

Responsibility: The Contractor shall be responsible for the actions of those contract and subcontract employees it provides to perform work for the VBA. In the event damage arises from work performed by Contractor employees the Contractor will be responsible for resources necessary to remedy the incident.

Investigative History: The investigative history for Contractor personnel working under this contract must be maintained in the databases of either OPM or DCSA.

Government Responsibilities:

After the VBA PERSEC has quality controlled the BI package from the Contractor, the VBA PERSEC will send a courtesy e-mail notification to the Contractor and the COR identifying the e-QIP email from DCSA including detailed instructions regarding completion of the BI application process and the level of background that was requested.

Upon receipt of required background investigative documents, VBA PERSEC will review the background investigative documents for completion and initiate the background investigation by forwarding the background investigative documents to OPM to conduct the BI. If the background documents are not complete, VBA PERSEC will notify the Contractor and COR of deficiencies and include corrective instructions.

VBA PERSEC will pay for background investigations and reciprocals processed through the VA PSAC and conducted by OPM in advance.

PERSEC will notify the COR and upload a copy of the Certificate of Investigation to PSIP when the BI has been favorably adjudicated or a Certificate of Eligibility (Form 4236) if the investigation has been reciprocated. The COR will also notify the Contractor of an unfavorable adjudication by the Government.

11.3 Training

All Contractor and sub-contractor personnel requiring access to VA information and VA information systems shall complete the following before being granted access to VA information and networks:

Sign and acknowledge understanding of and responsibilities for compliance with the National Rules of Behavior related to access to VA information and information systems.

Successfully complete any cyber security or privacy training as required for VA personnel with equivalent information and/or system access. All contractors that require a PIV card must complete Training and Management System (TMS) Course Number: VA 10176, VA Privacy and Information Security Awareness and Rules of Behavior.

The Contractor shall provide to the Contracting Officer a copy of the training certificates and signed Rules of Behavior for each applicable employee within 30 calendar days from the date TMS access is granted and annually thereafter, as required.

12. CONFIDENTIALITY AND NONDISCLOSURE

The preliminary and final deliverables and all associated working papers, application source code, and other material deemed relevant by the VA which has been generated by the Contractor in the performance of this task order are the exclusive property of the U.S. Government and shall be submitted to the COR at the conclusion of the Task Order.

The CO will be the sole authorized official to release verbally or in writing, any data, the draft deliverables, the final deliverables, or any other written or printed materials pertaining to this Task Order. No information shall be released by the Contractor. Any request for information relating to this Task Order presented to the Contractor shall be submitted to the CO for response.

Press releases, marketing material or any other printed or electronic documentation related to this project, shall not be publicized without the express written approval of the CO.

SECTION C - CONTRACT CLAUSES

C.1 TASK/DELIVERY ORDER INTRODUCTORY LANGUAGE

The terms and conditions of the Contractor's Indefinite Delivery Contract (IDC), including any contract modifications, apply to all task or delivery orders issued under the contract as a result of this RFQ. When a lower price has been established, or when the delivery terms, FOB terms, or ordering requirements have been modified by the task/delivery order, those modified terms will apply to all purchases made pursuant to it and take precedence over the contract. Any unique terms and conditions of an order issued under the contract that are not a part of the applicable IDC will govern. In the event of an inconsistency between the terms and conditions of a task/delivery order and the Contractor's IDC, other than those identified above, the terms of the IDC will take precedence.

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION) (APR 2025)	APR 2025

C.2 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of Clause)

C.3 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 2 years.

(End of Clause)

C.4 VAAR 852.219-70 VA SMALL BUSINESS SUBCONTRACTING PLAN MINIMUM REQUIREMENTS (NOV 2022)

(a) This clause does not apply to small business concerns.

(b) If the offeror is required to submit an individual subcontracting plan, the minimum goals for award of subcontracts to VA verified service-disabled veteran-owned small business and veteran-owned small business SDVOSB/VOSB shall be at least commensurate with the Department's annual SDVOSB/VOSB subcontracting goals.

(c) For a commercial plan, the minimum goals for award of subcontracts to SDVOSB/ VOSB shall be at least commensurate with the Department's annual service-disabled veteran-owned small business and veteran owned small business subcontracting goals for the total value of projected subcontracts to support the sales for the commercial plan.

(d) To be credited toward goal achievements, SDVOSB/VOSBs must be verified as eligible in the VA's Vendor Information Pages (VIP) database at <https://www.vetbiz.va.gov/vip/>. A contractor may reasonably rely on a subcontractor's status as shown in the VIP database as of the date of subcontract award, provided the contractor retains records of the results of the VIP database query.

(e) The Contractor shall annually submit a listing of SDVOSB/VOSB (for which credit toward goal achievement is to be applied) for review by personnel in the Office of Small and Disadvantaged Business Utilization. Use VA Form 0896A, Report of Subcontracts to Small and Veteran-Owned Business.

(f) Pursuant to 38 U.S.C. 8127(g), any business concern that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB/VOSB status is subject to debarment for a period of not less than five years. This includes the debarment of all principals in the business.

(End of Clause)

C.5 52.228-5 INSURANCE—WORK ON A GOVERNMENT INSTALLATION (JAN 1997)

(a) The Contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required in the Schedule or elsewhere in the contract.

(b) Before commencing work under this contract, the Contractor shall notify the Contracting Officer in writing that the required insurance has been obtained. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective—

(1) For such period as the laws of the State in which this contract is to be performed prescribe; or

(2) Until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a Government installation and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The Contractor shall maintain a copy of all subcontractors' proofs of required insurance, and shall make copies available to the Contracting Officer upon request.

(End of Clause)

C.6 VAAR 852.239-76 INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY (FEB 2023)

(a) All information and communication technology (ICT) (formerly referred to as electronic and information technology (EIT)) supplies, information, documentation and services support developed, acquired, maintained or delivered under this contract or order must comply with the “Architectural and Transportation Barriers Compliance Board Electronic and Information Technology (EIT) Accessibility Standards” (see 36 CFR part 1194). Information about Section 508 is available at <http://www.section508.va.gov/>.

(b) The Section 508 accessibility standards applicable to this contract or order are identified in the specification, statement of work, or performance work statement. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(c) The Section 508 accessibility standards applicable to this contract are:

(d) In the event of a modification(s) to this contract or order, which adds new EIT supplies or services or revises the type of, or specifications for, supplies or services, the Contracting Officer may require that the Contractor submit a completed VA Section 508 Checklist and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(e) If this is an Indefinite-Delivery type contract, a Blanket Purchase Agreement or a Basic Ordering Agreement, the task/delivery order requests that include ICT supplies or services will define the specifications and accessibility standards for the order. In those cases, the Contractor may be required to provide a completed VA Section 508 Checklist and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the provided documentation, remediation of the supplies or services to the level of

conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(End of Clause)

C.7 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

C.8 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

(End of Clause)

<u>FAR</u> <u>Number</u>	<u>Title</u>	<u>Date</u>
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT	JUN 2020
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT ALTERNATE I (NOV 2021)	JUN 2020
52.203-13	CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT	NOV 2021
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-13	SYSTEM FOR AWARD MANAGEMENT— MAINTENANCE (DEVIATION)	NOV 2025
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED	JAN 2025
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	OCT 2018
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV 2015

52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN (DEVIATION)	NOV 2025
52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN (DEVIATION) ALTERNATE II (NOV 2025)	NOV 2025
52.219-16	LIQUIDATED DAMAGES—SUBCONTRACTING PLAN (DEVIATION)	NOV 2025
52.219-28	POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (DEVIATION)	NOV 2025
52.222-3	CONVICT LABOR (DEVIATION)	NOV 2025
52.222-19	CHILD LABOR—COOPERATION WITH AUTHORITIES AND REMEDIES (DEVIATION)	NOV 2025
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)	NOV 2025
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION)	NOV 2025
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION)	NOV 2025
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION)	NOV 2025
52.222-41	SERVICE CONTRACT LABOR STANDARDS (DEVIATION)	NOV 2025
52.222-42	STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES	MAY 2014
52.222-43	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS-PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS) (DEVIATION)	NOV 2025
52.222-44	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS—PRICE ADJUSTMENT (DEVIATION)	NOV 2025
52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	NOV 2025
52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION) ALTERNATE I (NOV 2025)	NOV 2025
52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (DEVIATION)	NOV 2025
52.222-55	MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026 (DEVIATION)	NOV 2025
52.222-62	PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706 (DEVIATION)	NOV 2025
52.224-3	PRIVACY TRAINING	JAN 2017
52.225-5	TRADE AGREEMENTS	NOV 2023
52.225-26	CONTRACTORS PERFORMING PRIVATE SECURITY FUNCTIONS OUTSIDE THE UNITED STATES	OCT 2016

52.228-3	WORKERS' COMPENSATION INSURANCE (DEFENSE BASE ACT)	JUL 2014
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER— SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.233-3	PROTEST AFTER AWARD	AUG 1996
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT 2004
52.242-5	PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	JAN 2017
852.201-70	CONTRACTING OFFICER'S REPRESENTATIVE	DEC 2022
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION) (APR 2025)	APR 2025

C.9 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001;

(2) *Designated agency office* means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) *Invoice payment* has the meaning given in FAR 32.001; and

(5) *Payment request* means any request for contract financing payment or invoice payment submitted by the contractor under this contract.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Data transmission.* A contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) *Invoice requirements.* Invoices shall comply with FAR 32.905.

(e) *Exceptions.* If, based on one of the circumstances in this paragraph (e), the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of Clause)

C.15 DFARS CLAUSES FOR SOFA

252.225-7040 CONTRACTOR PERSONNEL SUPPORTING U.S. ARMED FORCES DEPLOYED OUTSIDE THE UNITED STATES (OCT 2023)

(a) *Definitions.* As used in this clause—

“Combatant Commander” means the commander of a unified or specified combatant command established in accordance with 10 U.S.C. 161.

“Contractors authorized to accompany the Force,” or “CAAF,” means contractor personnel, including all tiers of subcontractor personnel, who are authorized to accompany U.S. Armed Forces in applicable operations and have been afforded CAAF status through a letter of authorization. CAAF generally include all U.S. citizen n and third-country national employees not normally residing within the operational area whose area of performance is in the direct vicinity of U.S. Armed Forces and who routinely are collocated with the U.S. Armed Forces (especially in non-permissive environments). Personnel collocated with U.S. Armed Forces shall be afforded CAAF status through a letter of authorization. In some cases, Combatant Commander subordinate commanders may designate mission-essential host nation or local national contractor employees (e.g., interpreters) as CAAF. CAAF includes contractors previously identified as contractors deploying with the U.S. Armed Forces. CAAF status does not apply to contractor personnel in support of applicable operations within the boundaries and territories of the United States.

“Designated operational area” means a geographic area designated by the combatant commander or subordinate joint force commander for the conduct or support of specified military operations.

“Designated reception site” means the designated place for the reception, staging, integration, and onward movement of contractors deploying during a contingency. The designated reception site includes assigned joint reception centers and other Service or private reception sites.

“Law of war” means that part of international law that regulates the conduct of armed hostilities. The law of war encompasses all international law for the conduct of hostilities binding on the United States or its individual citizens, including treaties and international agreements to which the United States is a party, and applicable customary international law.

“Non-CAAF” means personnel who are not designated as CAAF, such as local national (LN) employees and non-LN employees who are permanent residents in the operational area or third-country nationals not routinely residing with U.S. Armed Forces (and third-country national expatriates who are permanent residents in the operational area) who perform support functions away from the close proximity of, and do not reside with, U.S. Armed Forces. Government-furnished support to non-CAAF is typically limited to force protection, emergency medical care, and basic human needs (e.g., bottled water, latrine facilities, security, and food when necessary) when performing their jobs in the direct vicinity of U.S. Armed Forces. Non-CAAF status does not apply to contractor personnel in support of applicable operations within the boundaries and territories of the United States.

“Subordinate joint force commander” means a sub-unified commander or joint task force commander.

(b) General.

(1) This clause applies to both CAAF and non-CAAF when performing in a designated operational area outside the United States to support U.S. Armed Forces deployed outside the United States in—

- (i) Contingency operations;
- (ii) Peace operations, consistent with Joint Publication 3-07.3; or
- (iii) Other military operations or military exercises, when designated by the Combatant Commander or as directed by the Secretary of Defense.

(2) Contract performance in support of U.S. Armed Forces deployed outside the United States may require work in dangerous or austere conditions. Except as otherwise provided in the contract, the Contractor accepts the risks associated with required contract performance in such operations.

(3) When authorized in accordance with paragraph (j) of this clause to carry arms for personal protection, Contractor personnel are only authorized to use force for individual self-defense.

(4) Unless immune from host nation jurisdiction by virtue of an international agreement or international law, inappropriate use of force by contractor personnel supporting the U.S. Armed Forces can subject such personnel to United States or host nation prosecution and civil liability (see paragraphs (d) and (j)(3) of this clause).

(5) Service performed by Contractor personnel subject to this clause is not active duty or service under 38 U.S.C. 106 note.

(c) Support.

(1)(i) The Combatant Commander will develop a security plan for protection of Contractor personnel in locations where there is not sufficient or legitimate civil authority, when the Combatant Commander decides it is in the interests of the Government to provide security because—

(A) The Contractor cannot obtain effective security services;

(B) Effective security services are unavailable at a reasonable cost; or

(C) Threat conditions necessitate security through military means.

(ii) In appropriate cases, the Combatant Commander may provide security through military means, commensurate with the level of security provided DoD civilians.

(2)(i) Generally, CAAF will be afforded emergency medical and dental care if injured while supporting applicable operations. Additionally, non-CAAF employees who are injured while in the vicinity of U. S. Armed Forces will normally receive emergency medical and dental care. Emergency medical and dental care includes medical care situations in which life, limb, or eyesight is jeopardized. Examples of emergency medical and dental care include examination and initial treatment of victims of sexual assault; refills of prescriptions for life-dependent drugs; repair of broken bones, lacerations, infections; and traumatic injuries to the dentition. Hospitalization will be limited to stabilization and short-term medical treatment with an emphasis on return to duty or placement in the patient movement system.

(ii) When the Government provides medical treatment or transportation of Contractor personnel to a selected civilian facility, the Contractor shall ensure that the Government is reimbursed for any costs associated with such treatment or transportation.

(iii) Medical or dental care beyond this standard is not authorized.

(3) Contractor personnel must have a Synchronized Predeployment and Operational Tracker (SPOT)-generated letter of authorization signed by the Contracting Officer in order to process through a deployment center or to travel to, from, or within the designated operational area. The letter of authorization also will identify any additional authorizations, privileges, or Government support that Contractor personnel are entitled to under this contract. Contractor personnel who are issued a letter of authorization shall carry it with them at all times while deployed.

(4) Unless specified elsewhere in this contract, the Contractor is responsible for all other support required for its personnel engaged in the designated operational area under this contract.

(d) Compliance with laws and regulations.

(1) The Contractor shall comply with, and shall ensure that its personnel supporting U.S. Armed Forces deployed outside the United States as specified in paragraph (b)(1) of this clause are familiar with and comply with, all applicable—

- (i) United States, host country, and third country national laws;
- (ii) Provisions of the law of war, as well as any other applicable treaties and international agreements;
- (iii) United States regulations, directives, instructions, policies, and procedures; and
- (iv) Orders, directives, and instructions issued by the Combatant Commander, including those relating to force protection, security, health, safety, or relations and interaction with local nationals.

(2) The Contractor shall institute and implement an effective program to prevent violations of the law of war by its employees and subcontractors, including law of war training in accordance with paragraph (e)(1)(vii) of this clause.

(3) The Contractor shall ensure that CAAF and non-CAAF are aware—

- (i) Of the DoD definition of “sexual assault” in DoD Directive 6495.01, Sexual Assault Prevention and Response Program;
- (ii) That the offenses addressed by the definition are covered under the Uniform Code of Military Justice (see paragraph (e)(2)(iv) of this clause). Other sexual misconduct may constitute offenses under the Uniform Code of Military Justice, Federal law, such as the Military Extraterritorial Jurisdiction Act, or host nation laws; and
- (iii) That the offenses not covered by the Uniform Code of Military Justice may nevertheless have consequences to the contractor employees (see paragraph (h)(1) of this clause).

(4) The Contractor shall report to the appropriate investigative authorities, identified in paragraph (d)(6) of this clause, any alleged offenses under—

- (i) The Uniform Code of Military Justice (chapter 47 of title 10, United States Code) (applicable to contractors serving with or accompanying an armed force in the field during a declared war or contingency operations); or
- (ii) The Military Extraterritorial Jurisdiction Act (chapter 212 of title 18, United States Code).

(5) The Contractor shall provide to all contractor personnel who will perform work on a contract in the deployed area, before beginning such work, information on the following:

- (i) How and where to report an alleged crime described in paragraph (d)(4) of this clause.
- (ii) Where to seek victim and witness protection and assistance available to contractor personnel in connection with an alleged offense described in paragraph (d)(4) of this clause.
- (iii) That this section does not create any rights or privileges that are not authorized by law or DoD policy.

(6) The appropriate investigative authorities to which suspected crimes shall be reported include the following—

(i) US Army Criminal Investigation Command at
<http://www.cid.army.mil/reportacrime.html>;

(ii) Air Force Office of Special Investigations at
<http://www.osi.andrews.af.mil/library/factsheets/factsheet.asp?id=14522>;

(iii) Navy Criminal Investigative Service at
<http://www.ncis.navy.mil/Pages/publicdefault.aspx>;

(iv) Defense Criminal Investigative Service at
<http://www.dodig.mil/HOTLINE/index.html>;

(v) To any command of any supported military element or the command of any base.

(7) Personnel seeking whistleblower protection from reprisals for reporting criminal acts shall seek guidance through the DoD Inspector General hotline at 800-424-9098 or www.dodig.mil/HOTLINE/index.html. Personnel seeking other forms of victim or witness protections should contact the nearest military law enforcement office.

(8)(i) The Contractor shall ensure that Contractor employees supporting the U.S. Armed Forces are aware of their rights to—

(A) Hold their own identity or immigration documents, such as passport or driver's license, regardless of the documents' issuing authority;

(B) Receive agreed upon wages on time;

(C) Take lunch and work-breaks;

(D) Elect to terminate employment at any time;

(E) Identify grievances without fear of reprisal;

(F) Have a copy of their employment contract in a language they understand;

(G) Receive wages that are not below the legal host-country minimum wage;

(H) Be notified of their rights, wages, and prohibited activities prior to signing their employment contract; and

(I) If housing is provided, live in housing that meets host-country housing and safety standards.

(ii) The Contractor shall post these rights in employee work spaces in English and in any foreign language(s) spoken by a significant portion of the workforce.

(iii) The Contractor shall enforce the rights of Contractor personnel supporting the U.S. Armed Forces.

(e) Preliminary personnel requirements.

(1) The Contractor shall ensure that the following requirements are met prior to deploying CAAF (specific requirements for each category will be specified in the statement of work or elsewhere in the contract):

(i) All required security and background checks are complete and acceptable.

(ii) All CAAF deploying in support of an applicable operation—

(A) Are medically, dentally, and psychologically fit for deployment and performance of their contracted duties;

(B) Meet the minimum medical screening requirements, including theater-specific medical qualifications as established by the geographic Combatant Commander (as posted to the Geographic Combatant Commander's website or other venue); and

(C) Have received all required immunizations as specified in the contract.

(1) During predeployment processing, the Government will provide, at no cost to the Contractor, any military-specific immunizations and/or medications not available to the general public.

(2) All other immunizations shall be obtained prior to arrival at the deployment center.

(3) All CAAF and selected non-CAAF, as specified in the statement of work, shall bring to the designated operational area a copy of the U.S. Centers for Disease Control and Prevention (CDC) Form 731, International Certificate of Vaccination or Prophylaxis as Approved by the World Health Organization, (also known as "shot record" or "Yellow Card") that shows vaccinations are current.

(iii) Deploying personnel have all necessary passports, visas, and other documents required to enter and exit a designated operational area and have a Geneva Conventions identification card, or other appropriate DoD identity credential, from the deployment center.

(iv) Special area, country, and theater clearance is obtained for all personnel deploying. Clearance requirements are in DoD Directive 4500.54E, DoD Foreign Clearance Program. For this purpose, CAAF are considered non-DoD contractor personnel traveling under DoD sponsorship.

(v) All deploying personnel have received personal security training. At a minimum, the training shall—

(A) Cover safety and security issues facing employees overseas;

(B) Identify safety and security contingency planning activities; and

(C) Identify ways to utilize safety and security personnel and other resources appropriately.

(vi) All personnel have received isolated personnel training, if specified in the contract, in accordance with DoD Instruction 1300.23, Isolated Personnel Training for DoD Civilian and Contractors.

(vii) Personnel have received law of war training as follows:

(A) Basic training is required for all CAAF. The basic training will be provided through—

(1) A military-run training center; or

(2) A web-based source, if specified in the contract or approved by the Contracting Officer.

(B) Advanced training, commensurate with their duties and responsibilities, may be required for some Contractor personnel as specified in the contract.

(2) The Contractor shall notify all personnel who are not a host country national, or who are not ordinarily resident in the host country, that—

(i) Such employees, and dependents residing with such employees, who engage in conduct outside the United States that would constitute an offense punishable by imprisonment for more than one year if the conduct had been engaged in within the special maritime and territorial jurisdiction of the United States, may potentially be subject to the criminal jurisdiction of the United States in accordance with the Military Extraterritorial Jurisdiction Act of 2000 (18 U.S.C. 3621, et seq.);

(ii) Pursuant to the War Crimes Act (18 U.S.C. 2441), Federal criminal jurisdiction also extends to conduct that is determined to constitute a war crime when committed by a civilian national of the United States;

(iii) Other laws may provide for prosecution of U.S. nationals who commit offenses on the premises of U.S. diplomatic, consular, military or other U.S. Government missions outside the United States (18 U.S.C. 7(9)); and

(iv) In time of declared war or a contingency operation, CAAF are subject to the jurisdiction of the Uniform Code of Military Justice under 10 U.S.C. 802(a)(10).

(v) Such employees are required to report offenses alleged to have been committed by or against Contractor personnel to appropriate investigative authorities.

(vi) Such employees will be provided victim and witness protection and assistance.

(f) Processing and departure points. CAAF shall—

(1) Process through the deployment center designated in the contract, or as otherwise directed by the Contracting Officer, prior to deploying. The deployment center will conduct deployment

processing to ensure visibility and accountability of Contractor personnel and to ensure that all deployment requirements are met, including the requirements specified in paragraph (e)(1) of this clause;

(2) Use the point of departure and transportation mode directed by the Contracting Officer;
and

(3) Process through a designated reception site (DRS) upon arrival at the deployed location. The DRS will validate personnel accountability, ensure that specific designated operational area entrance requirements are met, and brief Contractor personnel on theater-specific policies and procedures.

(g) Personnel data.

(1) The Contractor shall use the Synchronized Predeployment and Operational Tracker (SPOT) web-based system, to enter and maintain the data for all CAAF and, as designated by the Under Secretary of Defense (Acquisition and Sustainment) or the Combatant Commander, non-CAAF supporting U.S. Armed Forces deployed outside the United States as specified in paragraph (b)(1) of this clause.

(2) The Contractor shall enter the required information about their contractor personnel prior to deployment and shall continue to use the SPOT web-based system at <https://spot.dmdc.mil> to maintain accurate, up-to-date information throughout the deployment for all Contractor personnel. Changes to status of individual Contractor personnel relating to their in-theater arrival date and their duty location, to include closing out the deployment with their proper status (e.g., mission complete, killed, wounded) shall be annotated within the SPOT database in accordance with the timelines established in the SPOT Business Rules at <https://www.acq.osd.mil/asds/log/cso/ocs/spot.html>.

(h) Contractor personnel.

(1) The Contracting Officer may direct the Contractor, at its own expense, to remove and replace any Contractor personnel who jeopardize or interfere with mission accomplishment or who fail to comply with or violate applicable requirements of this contract. Such action may be taken at the Government's discretion without prejudice to its rights under any other provision of this contract, including the Termination for Default clause.

(2) The Contractor shall identify all personnel who occupy a position designated as mission essential and ensure the continuity of essential Contractor services during designated operations, unless, after consultation with the Contracting Officer, Contracting Officer's representative, or local commander, the Contracting Officer directs withdrawal due to security conditions.

(3) The Contractor shall ensure that Contractor personnel follow the guidance at paragraph (e)(2)(v) of this clause and any specific Combatant Commander guidance on reporting offenses alleged to have been committed by or against Contractor personnel to appropriate investigative authorities.

(4) Contractor personnel shall return all U.S. Government-issued identification, to include the Common Access Card, to appropriate U.S. Government authorities at the end of their deployment (or, for non-CAAF, at the end of their employment under this contract).

(i) Military clothing and protective equipment.

(1) Contractor personnel are prohibited from wearing military clothing unless specifically authorized in writing by the Combatant Commander. If authorized to wear military clothing, Contractor personnel must—

(i) Wear distinctive patches, arm bands, nametags, or headgear, in order to be distinguishable from military personnel, consistent with force protection measures; and

(ii) Carry the written authorization with them at all times.

(2) Contractor personnel may wear military-unique organizational clothing and individual equipment (OCIE) required for safety and security, such as ballistic, nuclear, biological, or chemical protective equipment.

(3) The deployment center, or the Combatant Commander, shall issue OCIE and shall provide training, if necessary, to ensure the safety and security of Contractor personnel.

(4) The Contractor shall ensure that all issued OCIE is returned to the point of issue, unless otherwise directed by the Contracting Officer.

(j) Weapons.

(1) If the Contractor requests that its personnel performing in the designated operational area be authorized to carry weapons for individual self-defense, the request shall be made through the Contracting Officer to the Combatant Commander, in accordance with DoD Instruction 3020.41, Operational Contractor Support. The Combatant Commander will determine whether to authorize in-theater Contractor personnel to carry weapons and what weapons and ammunition will be allowed.

(2) If Contractor personnel are authorized to carry weapons in accordance with paragraph (j)(1) of this clause, the Contracting Officer will notify the Contractor what weapons and ammunition are authorized.

(3) The Contractor shall ensure that its personnel who are authorized to carry weapons—

(i) Are adequately trained to carry and use them—

(A) Safely;

(B) With full understanding of, and adherence to, the rules of the use of force issued by the Combatant Commander; and

(C) In compliance with applicable agency policies, agreements, rules, regulations, and other applicable law;

(ii) Are not barred from possession of a firearm by 18 U.S.C. 922;

(iii) Adhere to all guidance and orders issued by the Combatant Commander regarding possession, use, safety, and accountability of weapons and ammunition;

(iv) Comply with applicable Combatant Commander and local commander force-protection policies; and

(v) Understand that the inappropriate use of force could subject them to U.S. or host-nation prosecution and civil liability.

(4) Whether or not weapons are Government-furnished, all liability for the use of any weapon by Contractor personnel rests solely with the Contractor and the Contractor employee using such weapon.

(5) Upon redeployment or revocation by the Combatant Commander of the Contractor's authorization to issue firearms, the Contractor shall ensure that all Government-issued weapons and unexpended ammunition are returned as directed by the Contracting Officer.

(k) Vehicle or equipment licenses. Contractor personnel shall possess the required licenses to operate all vehicles or equipment necessary to perform the contract in the designated operational area.

(l) Purchase of scarce goods and services. If the Combatant Commander has established an organization for the designated operational area whose function is to determine that certain items are scarce goods or services, the Contractor shall coordinate with that organization local purchases of goods and services designated as scarce, in accordance with instructions provided by the Contracting Officer.

(m) Evacuation.

(1) If the Combatant Commander orders a mandatory evacuation of some or all personnel, the Government will provide assistance, to the extent available, to United States and third country national Contractor personnel.

(2) In the event of a non-mandatory evacuation order, unless authorized in writing by the Contracting Officer, the Contractor shall maintain personnel on location sufficient to meet obligations under this contract.

(n) Next of kin notification and personnel recovery.

(1) The Contractor shall be responsible for notification of the employee-designated next of kin in the event an employee dies, requires evacuation due to an injury, or is isolated, missing, detained, captured, or abducted.

(2) In the case of isolated, missing, detained, captured, or abducted Contractor personnel, the Government will assist in personnel recovery actions in accordance with DoD Directive 3002.01E, Personnel Recovery in the Department of Defense.

(o) Mortuary affairs. Contractor personnel who die while in support of the U.S. Armed Forces shall be covered by the DoD mortuary affairs program as described in DoD Directive 1300.22, Mortuary Affairs Policy, and DoD Instruction 3020.41, Operational Contractor Support.

(p) Changes. In addition to the changes otherwise authorized by the Changes clause of this contract, the Contracting Officer may, at any time, by written order identified as a change order, make

changes in the place of performance or Government-furnished facilities, equipment, material, services, or site. Any change order issued in accordance with this paragraph (p) shall be subject to the provisions of the Changes clause of this contract.

(q) Subcontracts. The Contractor shall incorporate the substance of this clause, including this paragraph (q), in all subcontracts when subcontractor personnel are supporting U.S. Armed Forces deployed outside the United States in—

(1) Contingency operations;

(2) Peace operations consistent with Joint Publication 3-07.3; or

(3) Other military operations or military exercises, when designated by the Combatant Commander or as directed by the Secretary of Defense.

(End of clause)

DFARS 252.225-7043 ANTITERRORISM/FORCE PROTECTION FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015).

(a) Definition. “United States,” as used in this clause, means, the 50 States, the District of Columbia, and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall—

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is—

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from (Contracting Officer to insert applicable information cited in PGI 225.372-1).

(End of clause)

DFARS 252.228-7003 CAPTURE AND DETENTION (DEC 1991)

(a) As used in this clause—

(1) “Captured person” means any employee of the Contractor who is—

(i) Assigned to duty outside the United States for the performance of this contract; and

(ii) Found to be missing from his or her place of employment under circumstances that make it appear probable that the absence is due to the action of the force of any power not allied with the United States in a common military effort; or

(iii) Known to have been taken prisoner, hostage, or otherwise detained by the force of such power, whether or not actually engaged in employment at the time of capture; provided, that at the time of capture or detention, the person was either—

(A) Engaged in activity directly arising out of and in the course of employment under this contract; or

(B) Captured in an area where required to be only in order to perform this contract.

(2) A “period of detention” begins with the day of capture and continues until the captured person is returned to the place of employment, the United States, or is able to be returned to the jurisdiction of the United States, or until the person's death is established or legally presumed to have occurred by evidence satisfactory to the Contracting Officer, whichever occurs first.

(3) “United States” comprises geographically the 50 states and the District of Columbia.

(4) “War Hazards Compensation Act” refers to the statute compiled in Chapter 12 of Title 42, U.S. Code (sections 1701-1717), as amended.

(b) If pursuant to an agreement entered into prior to capture, the Contractor is obligated to pay and has paid detention benefits to a captured person, or the person's dependents, the Government will reimburse the Contractor up to an amount equal to the lesser of—

(1) Total wage or salary being paid at the time of capture due from the Contractor to the captured person for the period of detention; or

(2) That amount which would have been payable if the detention had occurred under circumstances covered by the War Hazards Compensation Act.

(c) The period of detention shall not be considered as time spent in contract performance, and the Government shall not be obligated to make payment for that time except as provided in this clause.

(d) The obligation of the Government shall apply to the entire period of detention, except that it is subject to the availability of funds from which payment can be made. The rights and obligations of the parties under this clause shall survive prior expiration, completion, or termination of this contract.

(e) The Contractor shall not be reimbursed under this clause for payments made if the employees were entitled to compensation for capture and detention under the War Hazards Compensation Act, as amended.

(End of clause)

252.237-7019 TRAINING FOR CONTRACTOR PERSONNEL INTERACTING WITH DETAINEES (JAN 2023).

(a) *Definitions.* As used in this clause—

“Combatant Commander” means the commander of a unified or specified combatant command established in accordance with 10 U.S.C. 161.

“Detainee” means a person in the custody or under the physical control of the Department of Defense on behalf of the United States Government as a result of armed conflict or other military operation by United States armed forces.

“Personnel interacting with detainees” means personnel who, in the course of their duties, are expected to interact with detainees.

(b) *Training requirement.* This clause implements Section 1092 of the National Defense Authorization Act for Fiscal Year 2005 (Pub. L. 108-375).

(1) The Combatant Commander responsible for the area where a detention or interrogation facility is located will arrange for training to be provided to contractor personnel interacting with detainees. The training will address the international obligations and laws of the United States applicable to the detention of personnel, including the Geneva Conventions. The Combatant Commander will arrange for a training receipt document to be provided to personnel who have completed the training.

(2)(i) The Contractor shall arrange for its personnel interacting with detainees to—

(A) Receive the training specified in paragraph (b)(1) of this clause—

(1) Prior to interacting with detainees, or as soon as possible if, for compelling reasons, the Contracting Officer authorizes interaction with detainees prior to receipt of such training; and

(2) Annually thereafter; and

(B) Provide a copy of the training receipt document specified in paragraph (b)(1) of this clause to the Contractor for retention.

(ii) To make these arrangements, the following points of contact apply:

[Contracting Officer to insert applicable point of contact information cited in PGI [237.171-3](#) (b).]

(3) The Contractor shall retain a copy of the training receipt document(s) provided in accordance with paragraphs (b)(1) and (2) of this clause until the contract is closed, or 3 years after all work required by the contract has been completed and accepted by the Government, whichever is sooner.

(c) *Subcontracts*. The Contractor shall include the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for commercial services, that may require subcontractor personnel to interact with detainees in the course of their duties.

(End of clause)

C.10 MANDATORY WRITTEN DISCLOSURES

Mandatory written disclosures required by FAR clause 52.203-13 to the Department of Veterans Affairs, Office of Inspector General (OIG) must be made electronically through the VA OIG Hotline at <https://www.vaoig.gov/hotline/online-forms> and clicking on "FAR clause 52.203-13 Reporting." If you experience difficulty accessing the website, call the Hotline at 1-800-488-8244 for further instructions.

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

SECTION E - SOLICITATION PROVISIONS

E.1 52.201-1 ACQUISITION 360: VOLUNTARY SURVEY (SEP 2023)

(a) All actual and potential offerors are encouraged to provide feedback on the preaward and debriefing processes, as applicable. Feedback may be provided to agencies up to 45 days after award. The feedback is anonymous, unless the participant self-identifies in the survey. Actual and potential offerors can participate in the survey by selecting the following link: [https:// www.acquisition.gov/360](https://www.acquisition.gov/360).

(b) The Contracting Officer will not review the information provided until after contract award and will not consider it in the award decision. The survey is voluntary and does not convey any protections, rights, or grounds for protest. It creates a way for actual and potential offerors to provide the Government constructive feedback about the preaward and debriefing processes, as applicable, used for a specific acquisition.

(End of Clause)

E.2 ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

1. This solicitation is issued under GSA OASIS+. To be eligible for award, Offerors must be a GSA OASIS+ Contractor and be active in SAM.
2. All Proposals, intentions, and questions, shall be submitted through GSA and to the Contracting Officer (Roxana.Cepeda@va.gov) and the Contract Specialist (Rebecca.Ubert@va.gov) on or before date and time specified on the SF 1449 in block 20. Only written questions will be accepted. It is requested that all questions be combined into one Microsoft Word document per Offeror.
3. Proposals shall be submitted on or before the date/time specified in Block 8 of the SF1449 through GSA and to the Contracting Officer Contracting Officer (Roxana.Cepeda@va.gov) and the Contract Specialist (Rebecca.Ubert@va.gov). Proposals received after the due date/time will be considered late in accordance with FAR 52.212-1(f). Failure to provide any of the required Volumes or documents as indicated will result in immediate elimination of the Proposal from consideration.
4. Format:

The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date and solicitation number in the header and/or footer.

Proposal page limitations are applicable to this procurement. The table below indicates the maximum page count (when applicable) for each volume of the Offeror's Proposal. All files shall be

submitted as a Microsoft Word (.doc, .docx), Microsoft Excel (.XLS), or Acrobat (PDF) file as indicated in the below table. Page size shall be no greater than 8 1/2" x 11". The top, bottom, left and right margins shall be a minimum of one inch each. Font size shall be no smaller than 12-point. Times New Roman fonts are required.

Characters shall be set at no less than normal spacing and 100% scale. Tables and illustrations may use a reduced font size not less than 8-point and may be landscape. Line spacing shall be set at no less than single space. Each paragraph shall be separated by at least one blank line. Page numbers, company logos, and headers and footers are not bound by the 12-point font requirement. Footnotes to text shall not be used. The use of hyperlinks in Proposals is prohibited.

If the Offeror submits annexes, documentation, attachments or the like, not specifically required by this solicitation, such will count against the Offeror's page limitations unless otherwise indicated in the specific Volume instructions below. Pages in violation of these instructions, either by exceeding the margin, font or spacing restrictions or by exceeding the total page limit will not be evaluated. Pages not evaluated due to violation of the margin, font or spacing restrictions will not count against the page limitations. The page count will be determined by counting the pages in the order they appear in the print layout view.

5. File Packaging:

Proposals shall be submitted as individual files.

6. Content Requirements:

All information shall be confined to the appropriate file. The Offeror shall confine submissions to essential matters, sufficient to define the Proposal and provide an adequate basis for evaluation. Offerors are responsible for including sufficient details, in a concise manner, to permit a complete and accurate evaluation of each Proposal.

7. Proposals submitted in response to this solicitation shall contain the following in separate volumes:

Volume Number	Evaluation Factor	File Name	Page Limitations
Volume I	Experience	[Offeror Name] Experience.doc/pdf	2 pages
Volume II	Key Personnel Narratives Résumés Commitment Letter	[Offeror Name] Key.doc/pdf	Narrative: 2 pages total Résumés: 2 pages each Commitment Letter: No Page Limit
Volume III	Operations Capabilities Certification	[Offeror Name] Certification.doc/pdf	1 page
Volume IV	Technical Approach	[Offeror Name] Tech.doc/pdf	25 pages

Volume V	Past Performance	[Offeror Name] Attachment A Perf.pdf	Attachment A: 6 pages (2 page per reference as shown on the form) Attachment 2 (PPQs): None, maximum of three to be submitted by references if PPIRS not available
Volume VI	SDVOSB Small Business Factor	[Offeror Name] SDVOSB.doc/pdf	Small Business/ SDVOSB Plan 5 pages Teaming Agreements: No page Limit
Volume VII	Price Including SF1449, SF30 (if applicable), terms and conditions and/or assumptions, Certifications & Representations	[Offeror Name] Price.doc/pdf [Offeror Name] Price.xls/.xlsx	Price Narrative: 1 page Price Proposal: None

The cover page, table of contents, résumés, and/or a glossary of abbreviations or acronyms will not be included in the page count of any Volume. Under no circumstances shall any pricing be included in any non-Price Factor Volume.

a) VOLUME I – EXPERIENCE

The Offeror shall submit two examples of demonstrated experience that addresses the offerors experience as it relates to the requirements identified within the performance work statement. Both examples shall include the outcome (metrics, successes, lessons learned, etc.) and how the customer benefited from the work performed. Examples must also include the department or agency name, size or scope of workload performed (i.e. NASA, 100,000 employees), and fiscal year of performance.

In addition, the proposal shall include demonstrated experience that relates directly to benefits training for the Transition Assistance Program.

b) VOLUME II – KEY PERSONNEL

The Offeror shall identify Key Personnel who meet the minimum qualifications stated in the Performance Work Statement. Key Personnel identified include Program Manager, Curriculum Design and Development Lead, a Project Manager – TAP Operations Lead, and Project Manager – Data Analytics Lead.

The Offeror shall include a detailed narrative for each Key Personnel detailing their qualifications and alignment with the PWS/labor description. The Offeror shall submit résumés for all proposed Key Personnel. Résumés shall not exceed 2 pages each. The Offeror shall also submit letters of commitment from all outside consultants. This letter of commitment may be attached to the consultant's résumé and does not count towards the 2-page limit.

c) VOLUME III – OPERATIONS CAPABILITIES CERTIFICATION

The Offeror shall provide written certification of their ability to provide all benefits advisors laptops and cell phones at the start of contract performance.

d) VOLUME IV – TECHNICAL APPROACH

The Offeror shall submit a Technical Approach volume which shall address in detail how the Offeror proposes to accomplish each of the Performance Work Statement (PWS) tasks and provide an appropriate work breakdown structure. The Offeror shall provide sufficient information to demonstrate its understanding of the requirements, providing a concise, detailed, and thorough discussion of its technical capability to successfully

provide the services as stated in the PWS. Under no circumstances shall any pricing be included in the Technical Approach. The detailed approach shall address the following:

- Program Management and Administration Project to include the Management Plan Approach, Program Management, and Cost Control (ODCs and travel)
- TAP Program Execution
- TAP Training
- TAP Curriculum to include design, dissemination, and innovation
- Strategic Action Planning, Coordination and Implementation, and Data Analysis

e) VOLUME V –PERFORMANCE RISK

The offeror shall complete Attachment A: Past Performance References in its entirety, listing a total of three contracts/orders for work performed in the past three years or currently being performed, for program support. The Government will make the determination of relevance, based on size, scope, and complexity of requirement, with regard to this requirement.

Contracts/orders listed may include those entered into with the Federal Government, agencies of state and local governments and commercial concerns. Offerors may also submit past performance information regarding predecessor companies, key personnel who have relevant experience or subcontractors that will perform major or critical aspects of the requirement when such information is relevant to the acquisition. For the purposes of this solicitation, a major subcontract is defined as 20% of the total contract effort. Data concerning the prime contractor shall be provided first, followed by each proposed major subcontractor, in alphabetical order.

Offerors shall indicate on Attachment A if there are Contractor Performance Assessment Reporting System (CPARS)/Past Performance Information Retrieval System (PPIRS) report(s) available for each reference. In the event an assessment was not completed in CPARS/PPIRS for the contract/order, offerors may request the reference point of contact (POC) to complete and submit a Past Performance Questionnaire (PPQ) (See Attachment B of this solicitation). The offeror shall instruct the POC at the referenced entity to return a copy of the completed PPQ directly to the CO and the CS at Roxana.Cepeda@va.gov and Rebecca.Ubert@va.gov NO LATER THAN THE CLOSING DATE OF THE SOLICITATION (inclusive of any closing date extensions granted via amendment). **PPQs will only be evaluated for those contracts/orders that do not have a CPARS/PPIRS report available.**

The Government is not required to contact references provided by the offeror. Also, references other than those identified by the offeror may be contacted by the Government to obtain additional information that will be used in the evaluation of the offeror's past performance. The Government may consider past performance information obtained through

other sources which is reasonably available and determined to be relevant. Past performance information obtained will be used for both the responsibility determination and best value decision.

Offerors shall indicate on Attachment A if they have no record of relevant past performance.

f) VOLUME VI – SDVOSB

Offerors shall submit the names of the SDVOSBs and VOSBs with whom they intend to subcontract and provide a brief description of the proposed subcontracts and the approximate dollar values of the proposed subcontracts. In addition, the offeror shall submit verification the proposed subcontractors are registered and verified in the VIP database as of the date of solicitation. A copy of teaming agreements and OASIS+ subcontracting plans shall be included with submission.

g) VOLUME VII – PRICE

Offerors shall submit a completed ATTACHMENT 1– PRICE SCHEDULE, outlining the price for the work identified in the PWS. Offerors shall complete tab 2 of the price schedule detailing labor categories, hours, and rate for each labor category addressing level of effort and labor mix.

Offerors shall submit a narrative, not to exceed one page, to detail any discounts or other relevant pricing information. Offerors are encouraged to provide discounts.

Offerors shall include a signed SF 1449 and amendment(s) (SF 30s), if any, in the Price Volume along with any certifications and representations. An authorized official of the Offeror shall sign the SF 1449, amendment(s) and all certifications requiring signature. Additionally, any proposed terms and conditions and/or assumptions upon which the Proposal is predicated shall be included in the Price Volume. Offerors are hereby advised that any Offeror-imposed terms and conditions and/or assumptions which deviate from the Government’s material terms and conditions established by the solicitation, may render the Offeror’s Proposal unacceptable, and thus ineligible for award.

(End of Addendum to 52.212-1)

E.3 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

A. BASIS FOR AWARD

The Government will award an order resulting from this solicitation to the responsible offeror whose proposal conforming to the solicitation will be most advantageous to the Government, price and other factors considered. Award will be made based on a best value assessment by the Source Selection Authority (Contracting Officer) (CO) considering price and non-price factors.

1. FACTORS TO BE EVALUATED:

The Government will use a “best value” approach to select the awardee, using the following

criteria, listed in descending order of importance, when evaluating quotes:

Non-Price Factors:

- Experience
- Key Personnel
- Technical Approach
- SDVOSB/ Small Business
- Performance Risk Price Factor(s)

Other Factors:

- Price

Non-price factors, when combined, are significantly more important than price. If two or more offerors are essentially equivalent based on non-priced factors, award may be made to the lower priced offeror. It should be noted that award may be made to other than the lowest priced offeror if the Government determines that a price premium is warranted due to merits of one or more of the non-price factors.

Proposals will be evaluated in a three (3) phased approach as follows:

Phase I (Pass/Fail):

The Technical Evaluation Team (TET) will review ONLY the Experience, Key Personnel, and Operations Capabilities Certification. After review and concurrence by the CO, those vendors who are not successful will be notified of such and will not be evaluated further.

Phase II:

The Technical Evaluation Team (TET) will review ONLY the Technical Approach. After review and concurrence by the CO, those vendors who are not successful will be notified of such and will not be evaluated further.

Phase III:

Performance Risk, SDVOSB Small Business Factor, and Price quotes will be evaluated in its entirety from those vendors who advanced from *Phase II*. After review of Performance Risk, SDVOSB Small Business Factor, and Price quotes in their entirety, the SSA/CO will proceed with further evaluation.

2. ACQUISITION APPROACH:

This solicitation is issued under GSA OASIS+. To be eligible for award, Offerors must be an active GSA OASIS+ Contractor and be active in SAM. In accordance with the OASIS+ master contract(s) terms and conditions, any OASIS+ contractor in a Dormant Status is not eligible to compete for task order award.

EVALUATION FACTORS

Proposals will be evaluated in a three (3) phased approach.

Phase I will consist of a Pass/Fail evaluation of Volume I: Experience, Volume II: Key Personnel, and Volume III Operations Capabilities Certification. After evaluation of volumes I, II, and III based on the ratings of each proposal against all evaluation criteria, only those offerors with a PASS rating will proceed to Phase II.

Phase I (Pass/Fail):

- Experience
- Key Personnel
- Operations Capabilities Certification

Offeror's Phase I Experience, Key Personnel, and Operations Capabilities Certification will be evaluated separately to determine their experience related to requirements identified within the performance work statement. Phase I proposals will be evaluated on a pass/fail basis.

Offerors experience and key personnel will be evaluated to determine if they meet the minimum requirements as defined in the solicitation. Offerors Operations Capabilities Certification will be confirmed to outline the offerors ability to meet required upfront equipment requirements.

Proposals that demonstrate experience and key personnel meeting the minimum solicitation requirements and relates directly to PWS will pass and move to Phase II.

Proposals that are assessed as 'Fail' in Phase I will not move on to Phase II.

Phase II will consist of an adjectival evaluation of Volume IV: Technical Approach. After evaluation of Volume IV, based on the ratings of each proposal against all evaluation criteria, only those offerors with a Good rating will proceed to Phase III.

Phase II:

- Technical Approach

The proposals will be evaluated strictly in accordance with their written content. Proposals which merely restate the requirement or state that the requirement will be met, are not sufficient and will be rated Unsatisfactory and not considered further; thus, ineligible for award. Contents of the written quotes will be evaluated to determine the degree and extent to which the requirements set forth in the Solicitation and PWS are satisfied. Risk relative to the proposed Technical Approach is evaluated as part of the Technical Evaluation to ascertain the degree of risk associated with the Vendor's proposal.

Technical approach will be evaluated for:

i. **Understanding of the Work** – The proposal shall be evaluated to determine the extent to which it demonstrates a clear understanding of all features involved in solving the problems and meeting the requirements presented in the contract, and the extent to which uncertainties are identified and resolutions proposed. A proposal which merely restates the requirement or states that the requirement will be met, without providing supporting rationale, demonstrated experience, and favorable performance, is unsatisfactory and will be determined unsuccessful. Marketing materials will not be considered.

ii. **Feasibility** – The proposal shall be evaluated to determine whether the offeror's methods and approach to meeting the contract requirements provide the Government with a high level of confidence of successful completion within the required schedule. The proposal shall be evaluated to determine the extent to which the proposed approach is relevant and workable and the end results achievable.

iii. **Completeness** - The Proposal shall be evaluated to determine whether the Offeror's methods and approach have adequately and completely considered, defined, and satisfied the requirements specified in the solicitation. The Proposal shall be evaluated to determine the extent to which each requirement has been addressed. The Proposal shall include all metrics, artifacts and documents that could be related to technical capability related to the work statement. Failure to include interconnections, stakeholders and demonstrated experience may result negatively.

iv. **Risk** – The relative risk to the proposed technical approach is evaluated as part of the Technical evaluation to ascertain the likelihood of success of the proposed approach. Without a full and complete response from the offeror, a high level of risk is assigned.

Proposals that are assessed less than Good will not move on to Phase III.

Phase III: For purposes of time and efficiency, the Government reserves the right to limit the number of vendors to only those Vendors whose Phase II rating is good or above, and approach presents the Government with benefits, a higher level of confidence of successful performance, and less risks.

The Government will evaluate Non-Price Factor V Performance Risk as follows:

The Performance Risk will be evaluated based on the narrative, PPQs, and other Government sources for quality, timeliness, and relevance (i.e., experience in providing services similar in size, scope, and complexity as described in the PWS). The Government will make determination of relevance. The Government will consider the level of risk associated with the contractor's past performance. In the case of a schedule holder without a record of relevant past performance or for whom information on past performance is not available, the schedule holder may not be evaluated favorably or unfavorably on past performance.

The Government will evaluate Non-Price Factor VI SDVOSB Small Business Factor as follows:

The SDVOSB Small Business Factor will be evaluated based on percentage of work to be completed by eligible service-disabled Veteran-owned small businesses offerors and Veteran-owned small businesses. SDVOSB and VOSB shall submit verification they are registered and verified in the SAM database as of the date of solicitation and shall provide breakout of how they will accomplish 51% of the work between SDVOSB/VOSB firms.

Other than SDVOSB or VOSB: Offerors must state in their proposals the names of the SDVOSBs and VOSBs with whom they intend to subcontract and provide a brief description of the proposed subcontracts and the approximate dollar values of the proposed subcontracts. In addition, the offeror shall submit verification the proposed subcontractors are registered and verified in the VIP database as of the date of solicitation.

Please provide a copy of your teaming agreements and OASIS+ subcontracting plans. In order to meet the requirements for Veteran subcontracting, the specifics for this order plan must show as a percentage of subcontracting at least:

35% SDVOSB Subcontracting

50% VOSB Subcontracting

The Government will evaluate Price Factor VII Price as follows:

In accordance with FAR 16.506(f) and GSA OASIS+, the Government will evaluate price to determine whether it is fair and reasonable. The Government may use any available technique it chooses to determine price reasonableness (but will consistently apply its chosen methodology across all proposals).

The government will evaluate quotes by adding the total of all line-item prices, including all years.

Price will not be evaluated adjectivally or assigned a score.

b. *Options.* The Government will evaluate offerors for award purposes by adding the total price for all options, to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

For the purposes of the award, the Government intends to evaluate the option to extend services, provided under FAR 52.217-8, as follows: The evaluation will consider the possibility that the option can be exercised at any time, and can be exercised in increments of one to six months, but for no more than a total of six months during the life of the contract. The evaluation will assume that the prices for any option exercised under FAR 52.217-8 will be at the same rates as those in effect for that period of performance under the contract. The evaluation will therefore assume that the addition of the price or prices of any possible extension or extensions under FAR 52.217-8 to the total price for the basic

requirement and the total price for the priced options has the same effect on the total price of all quotes. This evaluation will not obligate the Government to exercise any option under FAR 52.217-8.

c. A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

**E.4 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY
REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT	NOV 2024
52.212-1	INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	SEP 2023
52.212-3	OFFEROR REPRESENTATIONS AND CERTIFICATIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	OCT 2025
52.222-52	EXEMPTION FROM APPLICATION OF THE SERVICE CONTRACT LABOR STANDARDS TO CONTRACTS	MAY 2014

FOR CERTAIN SERVICES—CERTIFICATION

52.222-56	CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN	OCT 2025
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION	JUN 2020
852.209-70	ORGANIZATIONAL CONFLICTS OF INTEREST	OCT 2020
852.215-72	NOTICE OF INTENT TO RE-SOLICIT	OCT 2019
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	OCT 2018
852.233-71	ALTERNATE PROTEST PROCEDURE	OCT 2018
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023

**E.5 VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—
CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN
2023) (DEVIATION)**

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) ☐ *Services*. In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☐ *General construction*. In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☐ *Special trade construction contractors*. In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
 - (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1));
- and
- (iii) Prosecution for violating 18 U.S.C. 1001.
- (b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.
- (c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.
- (d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification

I hereby certify that if awarded the contract, [insert name of offeror] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of [insert name of offeror].

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____